

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 04/13/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09>

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 10:00 AM CASE NUMBER: MSC21-01034

CASE NAME: EDWARDS VS. JAGUAR LAND ROVER

JURY TRIAL 5-7 DAYS

FILED BY:

TENTATIVE RULING:

Continued pursuant to Order entered April 2, 2026.

2. 10:00 AM CASE NUMBER: C23-00011

CASE NAME: KATHLEEN MAGANA VS. SURINDER SINGH SANGHA

JURY TRIAL 7 TO 10 DAY TIME ESTIMATE

FILED BY:

TENTATIVE RULING:

Continued pursuant to Order entered March 23, 2026. Continued trial date is July 27, 2026.

Law & Motion

3. 9:00 AM CASE NUMBER: C23-00358
CASE NAME: RAY SY VS. RODNEY DOTSON
***HEARING ON MOTION IN RE: FOR LEAVE TO FILE AMENDED COMPLAINT**
FILED BY: SY, RAY
TENTATIVE RULING:

Plaintiffs Ray Sy and Violeta Sy (“Plaintiffs”) filed a Motion for Leave to File Amended Complaint on November 17, 2025 (the “Motion for Leave to File”). The Motion for Leave to File was set for hearing on April 6, 2026.

Shortly thereafter, on November 25, 2025, defendant Gin Ivy Sevilla filed a Motion to Continue Trial (the “Motion to Continue Trial”). The Motion to Continue Trial was set for hearing on April 13, 2026.

Both motions were subsequent set for hearing on the same date, April 13, 2026.

Background

Plaintiffs filed their initial Complaint on February 16, 2023 (the “Complaint”).

Defendants Rodney James Dotson and Business Alliance Insurance Company answered on April 7, 2023.

Defaults were entered on August 23, 2023 as to defendants Gin Ivy Sevilla and Civver Construction Design, Inc. Defendant Suretec Insurance Company was dismissed on January 29, 2024. Defendant Gin Ivy Sevilla later answered the Complaint after the default was set aside.

In June 2025, a trial date was set for January 12, 2026.

On November 17, 2025, Plaintiffs filed their Motion for Leave to File to “to add a specific prayer or recovery of a statutory \$500 plus attorney’s fees under Business & Professions Code section 7160 in connection with an existing fraud in the inducement claim arising from a home improvement contract.”

At the December 11, 2025 Issue Conference, the January 12, 2026 trial date was confirmed. Later, by ex parte application, the Court continued the January 12, 2026 to a date to be set by trial setting conference. At that trial setting conference on January 28, 2026, an OSC and Case Management Conference was set for March 20, 2026. At the March 20, 2026 trial setting conference, the Court resolved to set the matter for a further Case Management Conference on September 23, 2026. No new trial date has been set to date.

Analysis

1. Motion for Leave to File

The court has discretion “upon any terms as may be just” to allow an amendment to any pleading. Code Civ. Proc. § 473(a)(1); see Rule 3.1324 of California Rules of Court (“CRC”); see also *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488 (“*Hong Sang Market, Inc.*”); see also Weil & Brown, et al., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 6:602 *et seq.* Leave to

amend a pleading is entrusted to the sound discretion of the trial court. *Hong Sang Market, Inc.*, *supra*, 20 Cal.App.5th at 488.

The motion is unopposed. Having considered the nature of the proposed amended pleading and the totality of the circumstances, including the current procedural posture of the case, the Court grants Plaintiffs' request for leave to amend their Complaint.

2. Motion to Continue Trial

The prior trial date has been vacated at this point and the Motion to Continue Trial is moot.

Disposition

The Court further finds and orders as follows:

1. The Motion for Leave to File is GRANTED. Plaintiffs are granted leave to file an amended complaint herein. Such amended complaint shall be filed and served **within ten (10) days of notice of entry of this order.**
2. The Motion to Continue Trial is DENIED as moot.

4. 9:00 AM CASE NUMBER: C23-00358

CASE NAME: RAY SY VS. RODNEY DOTSON

***HEARING ON MOTION IN RE: TO CONTINUE TRIAL**

FILED BY: SEVILLA, GIN IVY

TENTATIVE RULING:

See Line 3 above.

5. 9:00 AM CASE NUMBER: C23-02467

CASE NAME: CHRISTINA CRAVAT VS. BIO-RAD LABORATORIES, INC.

***HEARING ON MOTION IN RE: LEAVE TO FILE A SECOND AMENDED COMPLAINT**

FILED BY: CRAVAT, CHRISTINA CUCCIA

TENTATIVE RULING:

Plaintiff Christina Cuccia Cravat's Motion for Leave to File a Second Amended Complaint (SAC) is **continued** by the Court to April 27, 2026, at 9:00 a.m.

California Rule of Court 3.1324 requires that a motion to amend be accompanied by a separate declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reasons why the request for amendment was not made earlier. The declaration must be signed under penalty of perjury. (Code Civ. Proc. § 2015.5.)

The Declaration of Michael J. Reed submitted in support of this motion is not signed under penalty of perjury and therefore lacks evidentiary value. The declaration otherwise substantially complies with Rule 3.1324(b), as it identifies the retained and new causes of action, explains that the amendment is necessary to consolidate all related claims consistent with the Court's consolidation order, and documents the meet-and-confer history in reasonable detail. A redline of the proposed SAC against

the FAC has already been submitted by Defendant as Exhibit 1 to the Carradero Declaration and is before the Court, addressing the Rule 3.1324(a) deficiency.

Counsel shall serve and file a supplemental declaration signed under penalty of perjury no later than April 17, 2026.

6. 9:00 AM CASE NUMBER: C24-00074
CASE NAME: NEXT LEVEL STRATEGIES, INC. VS. NEXTGEN LABORATORIES, A CALIFORNIA CORPORATION
***HEARING ON MOTION IN RE: AN ORDER TO SHOW CAUSE RE CONTEMPT AGAINST JOSEPH DEL SIGNORE RE SUBPOENA**
FILED BY: NEXT LEVEL STRATEGIES, INC.
TENTATIVE RULING:

Plaintiff and judgment creditor Next Level Strategies, Inc. (“Judgment Creditor”) filed a Motion for an Order to Show Cause re Contempt against Joseph del Signore re Subpoena on November 19, 2026 (the “Motion for OSC”). The Motion for OSC was initially set for hearing on April 6, 2026. Later the hearing date was reset by the Court on April 13, 2026.

Background

A money judgment was entered by the Court on May 14, 2024 (the “Judgment”) against defendant and judgment debtor NextGen Laboratories (the “Judgment Debtor”).

On August 12, 2024, the Court issued its Order to Appear for Examination directed to “Joseph Del Signore for NextGen Laboratories, a California corporation” (the “OEX”). The OEX was set for February 4, 2025.

The Judgment Creditor served a Civil Subpoena dated August 15, 2024 directed to “Joseph Del Signore President, NextGen Laboratories, a California corporation” with an address in Newport Beach, California (the “Subpoena”). See Declaration of Bryan D. Sampson and filed November 19, 2025, **Exhibit 3**; see also Affidavit filed December 12, 2025.

The Subpoena demands production of various documents, including various financial records (the “Records Sought”). *Id.* at **Exhibit 3**, Attachment 2.

The OEX and Subpoena were personally served on Joseph Del Signore. *Id.* at **Exhibit 4**.

On February 4, 2025 there was no appearance by Judgment Debtor for the OEX. The Court issued a bench warrant warning letter. See Minute Order dated February 4, 2025. The OEX was continued to March 4, 2025. *Id.*

There was no appearance at the continued OEX and the Court ordered a bench warrant be issued (to be prepared by counsel for Plaintiff with the related required paperwork). See Minute Order dated March 4, 2025.

Analysis

Disobedience of a subpoena duly served may be punished as a contempt of court. Code Civ. Proc. § 1991 (“Disobedience to a subpoena, or a refusal to be sworn, or to answer as a witness, or to subscribe an affidavit or deposition when required, may be punished as a contempt by the court issuing the subpoena.”); Code Civ. Proc. § 1209(a)(10) (“The following acts or omissions in respect to a court of justice, or proceedings therein, are contempts of the authority of the court: [¶]”).

[d]isobedience of a subpoena duly served"); see *Chapman v. Superior Court of Los Angeles County* (1968) 261 Cal.App.2d 194, 197-198;

The evidence proffered by Judgment Creditor demonstrates non-compliance with the duly served Subpoena. It appears just and appropriate for the Court to issue the requested Order to Show Cause.

Disposition

The Court finds and rules as follows:

1. The Motion for OSC is GRANTED.
2. The Court shall enter the proposed form of order lodged with the moving papers.

7. 9:00 AM CASE NUMBER: C24-00086
CASE NAME: EMIL MOUTON VS. ALLAN MENDIETA
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY:

TENTATIVE RULING:

Before the Court is a demurrer by defendant Allan Mendieta to plaintiffs' punitive damage allegations and prayer in the operative first amended complaint. For the reasons set forth, the demurrer is **OVERRULED**.

Background

Plaintiffs Emil Mouton and Elizabeth Kelly allege they were injured in a motor vehicle accident. The driver of the other vehicle was defendant Allan Mendieta. Plaintiffs sued Mr. Mendieta for the negligence (motor vehicle) and general negligence. The Court granted them leave to amend their original complaint to allege additional facts and attempt to state a basis for seeking punitive damages.

Mr. Mendieta filed a demurrer to the first amended complaint ("FAC") for failure to state facts sufficient for recovery of punitive damages. Plaintiffs oppose the demurrer. Mr. Mendieta also filed a motion to strike the punitive damages allegations and prayer for relief which is set concurrently with the hearing on the demurrer and will be addressed in a separate ruling.

Procedural Objection – Late Filing

A responsive pleading was required to be filed within 30 days after service of the FAC, as extended for service by email, mail, or other means. (Code Civ. Proc. §§ 430.40(a), 1010.6 and 1013.) Nevertheless, the Court has discretion to consider a late-filed demurrer. (*McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 280; *Jackson v. Doe* (2011) 192 Cal.App.4th 742, 749-750.) The Court exercises its discretion to rule on the merits of the demurrer, which it finds should be overruled for the reasons stated.

Procedural Issue – Declarations Addressing Evidence and Merits of the Claim for Punitive Damages

Defendant filed a declaration of counsel attaching Defendant's own written responses to discovery and excerpts of deposition transcripts taken in the case in support of the demurrer. (Leary Decl. Exhs. 2-4.) After the Court ordered the parties to complete a compliant meet and confer under Code of Civil Procedure section 430.41, counsel for each side filed supplemental declarations confirming the meet

and confer discussion took place but also addressing the parties' competing descriptions of evidence regarding an alleged witness to the accident and to facts relevant to the punitive damages claim. The Court does not consider this evidence in ruling on the demurrer. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, court does not consider "the substance of declarations, matter not subject to judicial notice, or documents judicially noticed but not accepted for the truth of their contents. [Citations omitted.]"]; *Williams v. Southern California Gas Co.* (2009) 176 Cal. App. 4th 591, 600 ["[A] court ruling on a general demurrer is not empowered to 'ascertain whether the facts stated [in the complaint] are true or untrue.' [Citation omitted.], " holding trial court could not draw inferences from discovery responses in sustaining a demurrer based on the untruthfulness of the allegations of the complaint]); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 660 [demurrer hearing cannot be turned into contested evidentiary hearing].)

Legal Standards Applicable to A Demurrer and Analysis

In ruling on the demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318]; *Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th 166, 173 ["a demurrer does not admit the plaintiff's contentions nor conclusions of law or fact."].) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss v. County of Alameda, supra*, 242 Cal.App.4th at 123.) The Court does not consider evidence except matters subject to judicial notice. (*Donabedian, supra*, 116 Cal.App.4th at 994.)

To be sustained, a demurrer must dispose of an entire cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) " 'There is no cause of action for punitive damages. Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances [set forth in Civil Code section 3294]. . . . "Punitive damages are merely incident to a cause of action, and can never constitute the basis thereof." ' [Citations omitted.]" (*Grieves v. Superior Court* (1984) 157 Cal. App. 3d 159, 163-164.) A motion to strike is the appropriate mechanism to attack a claim for punitive damages. (*Id.* at 164.)

The demurrer cannot be sustained because it would not dispose of an entire cause of action, only one type of damages (punitive damages) sought in the FAC. The argument that the demurrer is made to the entire complaint because the complaint as a whole does not support a claim for punitive damages misunderstands the applicable law. To sustain a demurrer to the FAC in its entirety would require the Court to find that the FAC fails to allege facts sufficient to state a cause of action against Mr. Mendieta. Defendant does not contend that the FAC fails to state a cause of action but rather than the facts alleged are insufficient to support the prayer for punitive damages, which is not a cause of action. The demurrer is therefore **OVERRULED**.

8. 9:00 AM CASE NUMBER: C24-00851
CASE NAME: DANIEL COSTA VS. FADIA SAADEH
*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS
FILED BY: SAADEH, FADIA
TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings (“Motion”) filed by defendants Fadia Saadeh, Patrick Ward, Country Equestrians LLC, and Dig This, Inc., (“Defendants”). The Motion argues that the first cause of action (promissory fraud), second cause of action (promissory estoppel), third cause of action (breach of contract), fourth cause of action (good faith improver claim pursuant to Code of Civil Procedure section 871.1), sixth cause of action (Bus. & Prof. Code, § 17200), seventh cause of action (unjust enrichment), eighth cause of action (disgorgement, Bus. & Prof. Code, § 7031, subd. (b)), ninth cause of action (recission), tenth cause of action (claim against contractor and other bonds), and eleventh cause of action (declaratory relief), fail to state facts sufficient to constitute causes of action.

For the reasons set forth below, the hearing on the Motion is continued until **Monday, May 18, 2026, at 9:00 a.m., in Department 34**. The parties shall meet and confer **by April 24, 2026**, and Defendants shall file the required “meet and confer” declaration showing compliance with Code of Civil Procedure section 439, subdivision (a), **by May 1, 2026**.

Code of Civil Procedure section 439, subdivision (a), requires the party intending to file a motion for judgment on the pleadings to meet and confer with the party whose pleading is being challenged “**in person, by telephone, or by video conference**” prior to filing the motion for judgment on the pleadings. In addition to this, a party may satisfy this requirement when the party who filed the pleading subject to the motion “failed to respond to the meet and confer request of the moving party. . . .” (*Ibid.*) The moving party must then file a declaration with the motion attesting to the party’s compliance with the meet and confer requirement. (*Ibid.*) Courts have wide discretion to continue hearings and order further meet and confer efforts to take place. (See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 [“Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.”].)

The Dylan Yale Fukai Declaration does not state the parties met and conferred in the manner required by the Code of Civil Procedure. (Fukai Decl., ¶¶ 1-4, Exhs. A and B.) The meet and confer letter sent by Defendants’ counsel does not seek to initiate a proper meet and confer, as nowhere does the attorney ask the party whose pleading is being challenged to schedule a call, videoconference, or meeting, or offer available dates to conduct such a conference. (See Fukai Decl., Exh. A [10/06/2025 letter stating, “Please respond no later than October 10, 2025, to indicate whether you will address the deficiencies in the Complaint.”].) Further, the October 21, 2025 email from Plaintiffs’ counsel stated a possible inclination to reduce the number of issues, at least with respect to the unjust enrichment cause of action, but the lack of a proper meet and confer halted any progress on that front. (Fukai Decl., ¶ 4, Exh. B [“I do intend to send a concise written response to your 10/6 letter, but

my response (except perhaps to your objections to the unjust enrichment cause of action) is not going to concede that the other causes of action are deficient.”].)

Sending a meet-and-confer letter to opposing counsel and asking them to let you know whether or not they will amend the complaint does not meet the letter or spirit of the meet and confer requirement of Code of Civil Procedure section 439, subdivision (a). Additionally, if there is a possibility of reducing the number of issues that comes up from written communications alone, it is imperative that the parties pursue that possibility by conducting a proper in person, telephone, or video-conference meet and confer. The hearing is therefore continued for the parties to meet and confer pursuant to the statute.

9. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

Plaintiff Michael Hoffman and the other named plaintiffs (“Plaintiffs”) filed a Motion for Leave to File First Amended Complaint on January 16, 2026 (the “Motion for Leave to File”). The Motion for Leave to File was set for hearing on April 13, 2026.

The motion is unopposed. A Notice of Non-Opposition was filed on March 30, 2026.

The court has discretion “upon any terms as may be just” to allow an amendment to any pleading. Code Civ. Proc. § 473(a)(1); see Rule 3.1324 of California Rules of Court (“CRC”); see also *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488 (“*Hong Sang Market, Inc.*”); see also Weil & Brown, et al., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 6:602 *et seq.* Leave to amend a pleading is entrusted to the sound discretion of the trial court. *Hong Sang Market, Inc.*, *supra*, 20 Cal.App.5th at 488.

Disposition

The Court further finds and orders as follows:

1. The Motion for Leave to File is GRANTED. Plaintiffs are granted leave to file an amended complaint herein. Such amended complaint shall be filed and served **within ten (10) days of notice of entry of this order.**
2. The Court shall issue the order after hearing.

10. 9:00 AM CASE NUMBER: C25-00149
CASE NAME: AMIR SAFFARIAN VS. ALI HASSAN
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: ARREAGA, GUILLERMO ARMANDO MARTINEZ
TENTATIVE RULING:

The demurrer of Defendants Guillermo Armando Martinez Arreaga, Rafael Antonio Martinez Arreaga, and SRGR Martinez Construction, Inc. to the First Amended Complaint of Plaintiff Amir Saffarian is **SUSTAINED WITH LEAVE TO AMEND.**

Defendants shall prepare the order and serve and file notice of entry of order. Plaintiff has 15 days from notice of entry of order in which to amend.

Background

Plaintiff Amir Saffarian alleges he owns two properties that he purchased intending to remodel and rent out , and that beginning in or about April 2023, Defendant Ali Hassan ("Hassan") and the other defendants induced him to proceed with a substantial construction and remodeling project. The operative First Amended Complaint ("FAC") alleges that Hassan held himself out as a licensed contractor, that Defendant Anthony Booker communicated payment instructions and project accounting, that Defendant Tri Valley Investments Inc. ("TVI") received wired funds, and that Arias and Arias Construction issued invoices and participated in carrying out the work. The FAC further alleges that the defendants acted as agents, employees, and officers of one another and that the corporate defendants were alter egos of the individual defendants.

Over the course of approximately nine months, Saffarian paid over \$922,000 in total, the bulk wired to TVI's Chase bank account, based on a stream of invoices with no itemized breakdowns, no written change orders, and no payment schedule. Costs ballooned far beyond the original \$31,075 estimate, with Defendants repeatedly presenting new invoices, change orders, and requests for additional funds, often after work had already been performed without Saffarian's prior approval.

In January 2024, when Saffarian requested lien releases and asked that remaining work be completed before a final payment of approximately \$66,000, Hassan abruptly abandoned both projects and directed all other defendants to stop work as well. Hassan also threatened to disclose unpermitted work, effectively admitting that much of the construction lacked required permits. Contra Costa County subsequently issued notices of violation and nuisance abatement proceedings regarding an unpermitted retaining wall the defendants built.

Saffarian asserts thirteen causes of action, including several state contractor law license violations, breach of contract, and fraud. Saffarian seeks disgorgement of all amounts paid, statutory penalties, punitive damages, attorney's fees, and equitable relief.

Paragraphs 15-18 collectively allege that fictitiously named Doe defendants are (1) unknown in identity, (2) legally responsible in some manner for the wrongful conduct alleged, (3) agents, employees, or officers of the other defendants who acted within the scope of that agency or employment with the permission and consent of the remaining defendants, and (4) the alter egos of the other defendants.

On September 12, 2025, Plaintiff filed a Doe Amendment substituting true names for three fictitious defendants previously designated in the FAC. Specifically, Plaintiff substituted Guillermo Armando Martinez Arreaga for DOE 1, Rafael Antonio Martinez Arreaga for DOE 2, and SRGR Martinez Construction, Inc. for DOE 3 (the "Martinez Defendants").

The Martinez Defendants now demur to the complaint for failure to state a cause of action and on grounds of uncertainty. Plaintiff opposes.

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (*Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.)

The court should not sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Judicial Notice

Plaintiff requests judicial notice of nine documents consisting of public records: the CSLB license details and personnel lists for both Arias Construction and SRGR, statements of information filed with the California Secretary of State for both entities, the articles of incorporation of SRGR dated March 26, 2025, the certificate of dissolution of Arias Construction dated June 10, 2025, and an affidavit of death of trustee recorded in Alameda County on August 18, 2025.

Plaintiff's request for judicial notice of Exhibits 1 through 9 is GRANTED. However, the Court does not take judicial notice of the truth of the matters asserted in the documents.

Analysis

The Martinez Defendants argue the FAC is deficient because it contains no factual allegations against them whatsoever. They also assert they never met, spoke with, or interacted with Saffarian in any way. They never entered his properties, performed any work, entered into any contract with him, or received any payments. They add that SRGR Martinez Construction, Inc. ("SRGR") did not even exist until March 25, 2025, more than a year after the relevant events in this case, and did not have a contractor's license until June 2025. The individual Martinez Defendants assert that they did not become officers of Arias Inc. until March 3, 2024.

As to the specific causes of action, Defendants argue that Business and Professions Code sections Saffarian invokes do not create a private right of action, but are instead regulatory statutes enforceable only by the Contractors State License Board. For the claims that do support private actions, such as fraud and breach of contract, Defendants argue the FAC fails to plead the required elements as to the Martinez Defendants. Defendants argue the alter ego and successor liability theories fail because the FAC pleads only bare conclusions with no supporting facts, such as commingling of funds, shared assets, or absorption of Arias Inc. by SRGR. The Martinez Defendants ask the court to sustain the demurrer without leave to amend.

In opposition, Plaintiff explains that he seeks to hold the Martinez Defendants liable as officers of Arias Construction who authorized, directed, or meaningfully participated in the tortious conduct

underlying the case. Plaintiff alleges he was originally ignorant of their identities and connection to the wrongdoing, but subsequently discovered through public records that Guillermo and Rafael Martinez held officer positions in Arias Construction during the operative period, with Guillermo serving as CEO and Rafael as Secretary, and that both were associated with Arias Construction's and SRGR's CSLB contractor licenses. Plaintiff also argues that SRGR is a mere continuation of Arias Construction, formed at the same address by the same officers shortly after the Martinez Defendants were served with the FAC, and that the subsequent dissolution of Arias Construction without notice to creditors was an attempt to evade existing liability.

Plaintiff additionally objects that the demurrer improperly relies on factual assertions that do not appear on the face of the complaint, including claims that Plaintiff never met or interacted with Guillermo or Rafael, that they never entered the subject properties, and that no facts connecting them to the alleged misconduct could ever be pleaded. none of which are proper grounds for demurrer. Finally, Plaintiff asserts that the Martinez Defendants' post-complaint conduct, including incorporating SRGR, allowing Arias Construction to default, and dissolving it while litigation remained pending, independently supports amendment of the complaint.

The Doe amendment procedure allows a plaintiff to bring in a previously unknown defendant, but it does not relieve him of the obligation to plead facts sufficient to state a cause of action against that defendant especially where that issue is raised by demurrer. Therefore, Defendants' demurrer is sustained with leave to amend for Plaintiff to allege facts to support his legal theories against them.

Disposition

Defendants' demurrer is **SUSTAINED WITH LEAVE TO AMEND**. Defendants shall prepare the order and serve and file notice of entry of order. Plaintiff has 15 days from notice of entry of order in which to amend.

11. 9:00 AM CASE NUMBER: C25-00975
CASE NAME: WC PROPERTIES (EDENS), LLC, VS. PET PROS LLC (WA),
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT**
FILED BY: PET PROS LLC (WA),
TENTATIVE RULING:

Defendant Pet Pros LLC (WA) ("Pet Pros") filed a Motion to Set Aside Default on November 21, 2025 (the "Motion to Set Aside Default"). The Motion to Set Aside Default was set for hearing on April 13, 2026. The motion is unopposed. A Notice of Non-Opposition was filed on April 3, 2026.

Background

Plaintiff filed a Complaint on April 7, 2025. A default was entered against Pet Pros on May 29, 2025. No default judgment has been entered as yet.

Analysis

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from "his or her mistake, inadvertence, surprise, or excusable neglect." Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480

("Rivercourt"). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

Pet Pros' management indicates that although its agent for service of process was served, the business not receive actual notice of the Summons or Complaint at that time and that its management did not learn about the service until it received the papers in June 2025 from the CT Corporation, after the default had already been entered. See Declaration of Frank Mahony filed on November 21, 2025, ¶15 *et seq.*

Disposition

The Court further finds and orders as follows:

1. The Motion to Set Aside Default is GRANTED.
2. Pet Pros shall file and serve a responsive pleading within ten (10) days.
3. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C25-01312

CASE NAME: YANHUA XU VS. CHIACHIA HSU

***HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS AND REQUEST FOR ATTORNEY'S FEES AND COSTS**

FILED BY:

TENTATIVE RULING:

Defendants Chia Chia Hsu, Yaobin Li (collectively, the "Defendants") filed a Motion to Expunge Lis Pendens on November 12, 2025 ("Motion to Expunge Lis Pendens"). The Motion to Expunge Lis Pendens was set for hearing on March 30, 2026. Thereafter, the Court, *sua sponte*, continued this matter to April 13, 2026. Notice was duly given.

Background

On May 8, 2025, the Complaint was filed herein by plaintiff Yanhua Xu. There are two named individual Defendants, Chia Chia Hsu, Yaobin Li.

The initial Complaint alleges that defendant Chia Chia Hsu ("Defendant Hsu") claims a 50% ownership interest in the real property located at 4800 Bissell Avenue in Richmond, California (the "Subject Property"). The Complaint alleges that defendant Yaobin Li claims the "remaining" 50% ownership interest in the Subject Property. Plaintiff alleges that she transferred a \$180,000 contribution to the \$1,615,000 purchase price of the Subject Property in 2022. She further alleges that these funds "were applied toward the down payment used to acquire [Defendant Hsu's] 50% recorded interest in the Property." However, "Plaintiff was not listed on title or the grant deed at the time of purchase." Among other claims, plaintiff seeks to "quiet title in her favor for a proportional interest in the Property consistent with her \$180,000 contribution."

A verified First Amended Complaint was filed on October 25, 2025. The First Amended Complaint contains similar allegations, and asserts that the "ownership interests are as follows Plaintiff –

34.88%; defendant Chiachia Hsu – 15.22%; defendant Yaobin Li – 50%.” The First Amended Complaint pleads causes of action for quiet title, reformation and declaratory relief.

On November 12, 2025, Defendants filed their Motion to Expunge Lis Pendens.

Analysis

The purpose of a lis pendens is “to give constructive notice of an action affecting real property to persons who subsequently acquire an interest in that property, so that the judgment in the action will be binding on such persons even if they acquire their interest before the judgment is actually rendered.” *Bishop Creek Lodge v. Scira* (1996) 46 Cal.App.4th 1721, 1733. “As a practical matter, the filing of a lis pendens usually clouds the title to the property and prevents its transfer until the litigation is resolved or the lis pendens is expunged.” *Malcolm v. Superior Court of Santa Clara County* (1981) 29 Cal.3d 518, 523, fn. 2 (superseded by statute on other point). At any time after a notice of pendency of action has been recorded, any party with an interest in the real property may apply to the Court to expunge the notice. See Code Civ. Proc. § 405.30.

The expungement statutes provide that a lis pendens may be expunged on three grounds: (1) the pleading on which the notice is based does not contain a real property claim (Code Civ. Proc. § 405.31); (2) the claimant has not established by a preponderance of the evidence the probable validity of the real property claim (Code Civ. Proc. § 405.32); or (3) adequate relief can be secured to the claimant by the giving of an undertaking (Code Civ. Proc. § 405.33). See *Carr v. Rosien* (2015) 238 Cal.App.4th 845, 857. Probable validity is met when the Plaintiff establishes her claim by a preponderance of the evidence. Code Civ. Proc., § 405.32.

Unlike most other motions, when a motion to expunge is brought, the burden is on the party opposing the motion to show the existence of a real property claim. *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647 (citing Code Civ. Proc. § 405.30).

Although Defendants concede that the First Amended Complaint pleads a real property claim, Defendants contend that Plaintiff cannot establish the probable validity of the claim. Plaintiff argues, among other things, that allegations of the transfer of the \$180,000 from her bank account to the escrow for the subject property is insufficient in light of the recorded state of title.

Opposition papers were filed on April 6, 2026.* The Opposition papers indicate that the parties had come to an agreement that resolves the pending motion. Plaintiff describes the recordation of a “Notice of Withdrawal of Pendency of Action” in reliance on the agreement. In light of the purported agreement and resolution, the parties are ordered to appear on the hearing to confirm that the matter has been resolved by agreement or else discuss resetting the motion for further hearing.

*Although the Opposition papers were filed untimely, the Court, in its discretion, has considered them.

Disposition

The Court finds and orders as follows:

1. PARTIES TO APPEAR.

13. 9:00 AM CASE NUMBER: C25-02007

CASE NAME: JUNG CHOI VS. RAMANUJAN GROUP LLC

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: RAMANUJAN GROUP LLC

TENTATIVE RULING:

Before the Court is Defendant Ramanujan Group LLC's Demurrer to Complaint. The Complaint alleges three causes of action: (1) breach of contract; (2) intentional interference with contractual relations; and (3) unjust enrichment.

Defendant demurs to each cause of action on the grounds that the complaint fails to state facts sufficient to each cause of action and is uncertain. (Code Civ. Proc. § 430.10(e)-(f)).

Defendant's demurrer is **OVERRULED** as detailed below.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("Doe")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 ("Doheny").)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

"Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 citing *Speegle v. Board of Fire Underwriters* (1946) 29 Cal.2d 34, 42.) In reading a complaint in the context of a demurrer, the court gives "the complaint a reasonable interpretation, and read it in context." (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081.) The allegations in the complaint must be construed "liberally in favor of the pleader." (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.)

Factual Allegations

Plaintiff Jung Dong Choi is a tenant in Blackhawk Plaza under a Shopping Center Lease originally dated July 25, 2011, amended September 12, 2012, and amended a second time with an Assignment and Assumption Agreement on May 13, 2021 (generally, the "Lease"). (¶ 4, Exs. A-B.) Defendant is the owner and landlord of Blackhawk Plaza. (¶ 6.) Plaintiff operates a restaurant at the Plaza pursuant to the Lease. (¶ 7.)

Plaintiff alleges that Defendant has failed to follow the terms of the Lease and has interfered with his attempt to sell the restaurant. (¶¶ 8-13.) He asserts several alleged breaches of the Lease including the (1) failure to provide an annual accounting for common area payments, (2) failure to provide marketing activities, and (3) denial of insurance benefits. (*Ibid.*) The failure to approve the assignment

discussed below is also alleged as a breach of the Lease.

As to the interference claim, Plaintiff alleges that he decided to sell his restaurant and entered into a sale agreement with a third-party wherein he would sell the restaurant for \$300,000. (¶ 8.) Plaintiff alleges that Defendant is improperly interfering with the sale by requiring unreasonable terms before approving the assignment to the third-party buyer. (¶ 13.)

Analysis

Breach of Written Contract

“The standard elements of a claim for breach of contract are ‘(1) the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) damage to plaintiff therefrom.’” (*Wall Street Network, Ltd. V. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178, citations omitted.)

Plaintiff alleges at least four separate breaches of the Lease: the (1) failure to provide an annual accounting for common area payments, (2) failure to provide marketing activities, (3) denial of insurance benefits, and (4) the failure to approve the assignment. Defendant argues those alleged actions violate duties contained in the Lease. As such, Plaintiff has failed to properly assert a breach of contract cause of action.

As to the first alleged breach, Plaintiff asserts that under the Lease he was required to pay a pro rata share of costs associated with maintaining the common areas of the shopping center. These costs were to be paid monthly in advance based on Defendant’s estimates, subject to an end-of-year adjustment based on the actual cost of such maintenance. Plaintiff alleges that Defendant has failed to timely reconcile the yearly charges and provide an accounting and/or repayment of any overpayment by Plaintiff. Specifically, he alleges that Defendant “only recently” accounted for the 2021 payments resulting in an approximately \$80,000 repayment to Plaintiff. (¶ 10.) No accounting or adjustment has been made for 2022, 2023, 2024, or 2025. (*Ibid.*)

The Lease states, in pertinent part:

“Tenant’s Pro Rata Share of Common Area costs and expenses for each Lease Year shall be paid monthly, in advance, in equal installments in an amount estimated by Landlord from time to time, subject to adjustment after the end of each Lease Year on the basis of the actual cost for such Lease Year.” (Lease ¶ 6.2.)

“On a demurrer, the court must consider the sufficiency of the allegations ... to determine whether the contract is reasonably susceptible to the plaintiff’s alleged interpretation.” (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1128.) “So long as the pleading does not place a clearly erroneous construction upon the provisions of the contract, in passing upon the sufficiency of the complaint, [the Court] must accept as correct plaintiff’s allegations as to the meaning of the agreement.” (*Aragon-Haas v. Family Security Ins. Services, Inc.* (1991) 231 Cal.App.3d 232, 239 quoting *Marina Tenants Assn. v. Deauville Leland E. Burns, Inc.* (1989) 209 Cal.App.3d 860, 866.)

Plaintiff’s interpretation of the Lease and his allegations that Defendant has failed to comply with its

obligations related to the common area payments reasonable. While the Lease may not use the term 'accounting,' it does provide for a year-end adjustment which would require a review of the actual expenses for the year. The allegations the Defendant provided such an 'accounting' in 2021 but has failed to do so thereafter is sufficient to allege a breach of this term of the Lease.

Plaintiff also alleges that he was required to make payments to Defendant that were to be used by Defendant to market and promote the shopping center. (§12, 17.) He made the required payments, but Defendant failed to use the money to market and promote the shopping center. (§1 17-18.) The Lease provides, in pertinent part:

"Tenant agrees to pay to Landlord, in monthly installments, as Additional Rent, a "Marketing Charge" ... [that] will be deposited into the Marketing Fund. ... The Marketing Fund **will be used** by Landlord only to pay some or all of the costs and expenses for the promotion of the Shopping Center...." (Lease §1 3.5 emphasis added.)

Defendant argues that the Complaint "fails to state facts sufficient to constitute this cause of action because Plaintiff fails to identify any action that Defendant failed to perform based on the terms of the Lease but merely sets forth a baseless legal conclusion." (Demurrer at 7:19-21.) This argument fails to acknowledge that the Complaint specifically alleges that "Defendant failed to provide the marketing and other promotional activities that were contemplated by the funds that were paid by Plaintiff." (§1 18.)

The Lease requires Plaintiff to make payments into a Marketing Fund which "will be used" by the Landlord to pay for marketing expenses. Plaintiff's allegations that he made such payments, and Defendant kept the money but failed to use it for marketing reasonably sets forth a cause of action for breach of the Lease.

Defendant also makes conclusory arguments relating to Plaintiffs alleged breaches pertaining to insurance and failure to approve the assignment of the Lease. "If the complaint states a cause of action under any theory ... that aspect of the complaint is good against the demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.) If a single breach of the Lease is properly alleged, the demurrer will fail as to the whole cause of action.

In Reply, Defendant raises an argument relating to Plaintiff's purported 'special damages' not being specifically pled. That issue was not raised in the opening papers. "It is elementary that points raised for the first time in a reply brief are not considered by the court." (*Magic Kitchen LLC v. Good Things Internat., Ltd.* (2007) 153 Cal.App.4th 1144, 1161 quoting *Levin v. Ligon* (2006) 140 Cal.App.4th 1456, 1486.)

As the Court has determined that at least two of the alleged breaches are sufficiently plead, the Court need not address each of the remaining arguments. Based on the above, Defendant's demur to the first cause of action for breach of contract is **OVERRULED**.

Intentional Interference with Contractual Relations

"The elements of a cause of action for intentional interference with contractual relations are '(1) the existence of a valid contract between the plaintiff and a third party; (2) the defendant's knowledge of that contract; (3) the defendant's intentional acts designed to induce a breach or disruption of the

contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.” (*Jenni Rivera Enterprises, LLC v. Latin World Entertainment Holdings, Inc.* (2019) 36 Cal.App.5th 766, 782 quoting *Redfearn v. Trader Joe’s Co.* (2018) 20 Cal.App.5th 989, 997.)

Defendant’s complete argument to this cause of action is that “Plaintiff fails to set forth any facts that establish [1] that a valid contract exists between Plaintiff and a third party, [2] any facts that establish that Defendant’s intentional acts were designed to induce a breach or disruption of the contractual relationship, and [3] fails to set forth any facts that support any purported resulting damage.” (Demurrer at 9:15-18.)

First, as noted by Plaintiff, the Complaint alleges that Plaintiff “entered into a sale agreement with a prospective buyer pursuant to which his restaurant business would be sold for in excess of \$300,000.” (¶ 8.) That sufficiently alleges an existing contract between Plaintiff and a third party. The Complaint also alleges that “Defendant approved the prospective buyer,” (¶ 27) thereby alleging that Defendant had knowledge of the contract.

In reply, Defendant argues that Plaintiff failed to attach the contract between Plaintiff and the third party. While a lease or assignment thereof may be covered by the statute of frauds, Defendant fails to cite any authority indicating that Plaintiff is required to attach a copy of the underlying contract to his complaint. A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) “A written contract may be pleaded either by its terms – set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference – or by its legal effect.” (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489.) Plaintiff’s description of the contract is sufficient to allege the existence of the contract.

Second, the Complaint alleges that Defendant failed to reasonably approve the assignment and assumption of Lease but instead attempted to “extract consideration from Plaintiff to which it was not entitled,” including requiring Plaintiff to release any and all claims (such as those asserted in this matter) and to assume continuing ongoing liability. (¶¶ 13, 28-29.) The Lease provides that Plaintiff cannot assign or transfer the Lease without Defendant’s written approval “which consent shall not be unreasonably withheld or delayed.” (Lease ¶ 17.1.) By approving of the prospective buyer but failing to reasonably provide that assignment and assumption of the Lease Defendant’s actions have prevented Plaintiff from consummating the sale.

Plaintiff need not allege that the “primary purpose of the defendant’s actions was to disrupt the contract.” (*Jenni*, supra, 36 Cal.App.5th at 782 citation omitted.) Instead, Plaintiff’s allegations must reasonably show that Defendant “knows that the interference is certain or substantially certain to occur as a result of his [or her] action,” or in this case inaction. (*Ibid.*)

The Complaint alleges that Defendant knew about the proposed sale and even approved the buyer. However, Defendant has failed to reasonably move forward with approving the assignment and assumption of Lease by improperly attempting to extract improper consideration from Plaintiff to approve the assignment. It is reasonable to infer that Defendant knew that interference with the sale contract “is certain or substantially certain to occur” due to its failure to provide approval of the assignment – since the assignment cannot occur without Defendant’s written approval. Whether the

withholding of the approval was reasonable is a matter that cannot be determined on demurrer.

Finally, as to damages, the complaint alleges that due to Defendant's actions "has led to the buyer withdrawing from the contract to purchase" Plaintiff's restaurant. (¶ 28.) As a result, Plaintiff has been damaged in excess of \$300,000. (¶ 30.) These allegations sufficiently detail the resulting damage.

Based on the above, Defendant's demurrer to the second cause of action for intentional interference with contractual relations is **OVERRULED**.

Unjust Enrichment

Defendant first argues that unjust enrichment is not a cause of action in California, citing *Melchior v. New Line Productions* (2003) 106 Cal.App.4th 779, 793 and *Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370. Plaintiff counters citing *Dunkin v. Boskey* (2000) 82 Cal.App.4th 171, 197 and *Hirsch v. Bank of America* (2003) 107 Cal.App.4th 708, 717, 721–722 which indicate that unjust enrichment is a cause of action.

The First District's take on this matter is instructive:

"[While] there are decisions [finding unjust enrichment is not a cause of action] ... this appellate district appears split on the issue. ¶ The point is largely academic because this district has long taken the position that, even if unjust enrichment does not describe an actual cause of action, the term is 'synonymous with restitution,' which can be a theory of recovery. [citations.] This is accepted even by the courts which do not consider unjust enrichment a proper cause of action. [citations.] ¶ Thus, the actual title of plaintiff's [cause of action] cannot be dispositive. This District has also repeatedly accepted that 'there is no particular form of pleading necessary to invoke the doctrine of restitution.'" (*O'Grady v. Merchant Exchange Productions, Inc.* (2019) 41 Cal.App.5th 771, 791-92, numerous internal citations omitted.)

Here, while the third cause of action is titled "Unjust Enrichment," the title is not dispositive. Instead, the Court must look past the title to the substance of the claim. To state a claim for unjust enrichment, as well as for a claim for restitution, the plaintiff must allege receipt of a benefit and unjust retention of the benefit at the expense of another. (See e.g., *Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc.* (2018) 29 Cal.App.5th 230, 238; *Tufeld Corp. v. Beverly Hills Gateway, L.P.* (2022) 86 Cal.App.5th 12, 31-32.) The Complaint adequately alleges that Plaintiff made payments to Defendant but received nothing, or less than was required, in return. This sufficiently states a claim for unjust enrichment/restitution.

Defendant next argues that Plaintiff is not entitled to plead a claim for unjust enrichment because he has a claim for breach of contract. As cited by Defendant: "As a matter of law, an unjust enrichment claim does not lie where the parties have an enforceable express contract." (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370 citing *California Medical Assn. v. Aetna U.S. Healthcare of California, Inc.* (2001) 94 Cal.App.4th 151, 172.)

While that may be a correct statement of the law, it true that a "plaintiff is permitted to plead alternative inconsistent theories." (*Dubin v. Robert Newhall Chesebrough Trust* (2002) 96 Cal.App.4th

465, 477.) As Defendant's authority asserts, a party may seek restitution/unjust enrichment in lieu of breach of contract damages "when the parties had an express contract, but it ... is unenforceable or ineffective for some reason." (*Durell*, supra, 183 Cal.App.4th at 1370.) If it is shown that the Lease is unenforceable or ineffective for some reason, Plaintiff would be able to proceed with his claim for unjust enrichment.

Based on that above, Defendant's demur to the third cause of action for unjust enrichment is **OVERRULED**.

Conclusion

Defendant's demurrer to the first, second, and third causes of action is **OVERRULED** in its entirety.

14. 9:00 AM CASE NUMBER: C25-02007

CASE NAME: JUNG CHOI VS. RAMANUJAN GROUP LLC

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF JUNG DONG CHOI'S COMPLAINT
FILED BY: RAMANUJAN GROUP LLC**

TENTATIVE RULING:

Before the Court is Defendant Ramanujan Group, LLC's Motion to Strike Portions of Plaintiff Jung Dong Choi's Complaint.

Factual Allegations

See Line 13.

Scope of Motion

Defendant seeks to strike allegations relating to Plaintiff's requests for (1) punitive and exemplary damages, as well as attorney fees, related to the second cause of action for intentional interference with contractual relations, as well as the request for (2) attorney fees related to the third causes of action for unjust enrichment. (See Notice at 2:8-26.)

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. § 435 (b)(1); Cal. Rules of Court, Rule 3.1322(b).)

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Cal. Code Civ. Proc. §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782 ["matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].) An "irrelevant" matter includes allegations not essential to the claim or defense, as well as allegations "neither pertinent to nor supported by an otherwise sufficient claim or defense." (CCP§ 431.10 (b).)

Analysis

Punitive Damages

Plaintiff only seeks punitive damages related to the claim for intentional interference with contractual relations. To support punitive damages, the complaint must allege the ultimate facts of the defendant's oppression, fraud or malice. (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 316.)

“‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294.) “*Animus malus* or evil motive, then, is the central element of the malice which justifies an exemplary award.” (*G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 30.) “‘Oppression’ means ‘subjecting a person to cruel and unjust hardship in conscious disregard of his rights.’” (*Monge v. Superior Court* (1986) 176 Cal.App.3d 503, 511.)

Regarding a request for punitive damages against a corporate entity, such an award “must rest on the malice of the corporation’s employees.” (*Cruz v. Homepage* (2000) 83 Cal.App.4th 160, 167.) However, the “law does not impute every employee’s malice to the corporation. Instead, the punitive damages statute requires proof of malice among corporate leaders: the ‘officer[s], director[s], or managing agent[s].’” (*Ibid.* quoting Cal. Civ. Code § 3294, subd. (b).)

A ‘managing agent’ is an employee “who ‘exercise[s] substantial discretionary authority over decisions that ultimately determine *corporate policy*.’” (*Ibid.* italics in original.) ‘Corporate policy’ is “the general principles which guide a corporation, or rules intended to be followed consistently over time in corporate operations.” (*Ibid.*) “A ‘managing agent’ is one with substantial authority over decisions that set these general principles and rules.” (*Id.* at 167-68.)

As noted by Defendant, there are no allegations that any corporate officer, director, or managing agent was aware, much less approved or ratified, the decision not to allow the assignment of the lease. There are general allegations that “Defendant” refused to approve the assignment. “However, [the Court] fail[s] to see how any of those allegations sets forth facts to show [Defendant]’s advance knowledge, authorization or ratification.” (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 168.)

Plaintiff argues that it is not required to provide such allegations at the pleading stage, citing *Credit Managers Assn. v. Superior Court* (1975) 51 Cal. App.3d 352, 361 and *Okun v. Superior Court* (1981) 29 Cal.3d 442, 458. Neither of those cases, however, pertain to the pleading requirements necessary for a punitive damages claim against a corporate defendant. Defendant also cites *Romo v. Ford Motor Co.* (2002) 99 Cal.App.4th 1115, 1140-1141 and *Pacific Gas and Electric Company v. Superior Court* (2018) 24 Cal.App.5th 1150, 1173.

Romo pertains to an appeal after a jury trial and arguments related to the sufficiency of the evidence to support the punitive damages award. It does not pertain to pleading standards, so does not support Defendant’s position. Likewise, *Pacific Gas* involved a motion for summary adjudication and “whether plaintiff presented sufficient evidence to raise a triable issue of fact as to malice.” (*Pacific Gas* 24 Cal.App.5th at 1170.) Again, it does not address pleading standards and thus does not control.

The *Grieves* case cited above, however, does specifically address the sufficiency of the allegations of a

complaint involving a request for punitive damages against a corporate defendant. It indicates that there need to be some allegations showing that a corporate officer, director, or managing agent knew of and/or ratified the alleged malicious actions to survive demurrer. After noting that there were no such allegations, the Court of Appeal held that the “trial court should have granted real parties’ motions to strike” the paragraph seeking punitive damages “*with leave to amend.*” (*Grieves* 157 Cal.App.3d at 168 italics in original.)

Attorney’s Fees

“As a general rule, each party to litigation must bear its own attorney fees, unless otherwise provided by statute of contract.” (*Hyduke’s Valley Motors v. Lobel Financial Corp.* (2010) 189 Cal.App.4th 430.) Here, the parties do not argue that there is a statute that allows for attorneys’ fees. There is an attorney fee provision in the Lease, which is the basis for Plaintiff’s claims. Defendant only moves to strike the request for attorneys’ fee related to the intentional interference and unjust enrichment claims – not the breach of contract claim.

Intentional Interference with Contractual Relations

Section 30.20 of the Lease states, in pertinent part:

“If either party institutes an action or proceeding against the other ***relating to the provisions of*** this Lease, then the non-prevailing party in such action or proceeding shall reimburse the prevailing party for its actual attorneys’ fees....” (Lease § 30.20 emphasis added.)

Defendant argues that Plaintiff cannot recover under the ‘tort of another’ doctrine. Plaintiff does not rely on this theory but instead contends that scope of the attorneys’ fee provision is broad enough to encompass his claim for intentional interference.

As the highlighted section above indicates, the attorneys’ fee provision can be invoked in any action “relating to the provisions of” the Lease. Plaintiff’s intentional interference claim is based on the theory that Defendant improperly withheld approval of an assignment of his lease to an approved prospective purchaser/tenant which is, among other things, a violation of the terms of the Lease. Specifically, section 17.1 of the Lease indicates that the Plaintiff cannot “assign or transfer” the lease without “the prior written consent of Landlord, which consent shall not be unreasonably withheld or delayed.” (Lease § 17.1.)

Plaintiff alleges that Defendant unreasonably withheld and/or delayed its written consent to assignment of Plaintiff’s lease which led directly to “the buyer withdrawing from the contract to purchase” Plaintiff’s restaurant “in that Plaintiff could not deliver the operating restaurant within the time allowed.” (Complaint ¶ 28.) Thus, Plaintiff’s intentional interference claim ‘relates to’ a provision of the Lease.

“Parties to a contract ‘may validly agree that the prevailing party will be awarded attorney fees incurred in any litigation between themselves, whether such litigation sounds in tort or in contract.’” (*GoTek Energy, Inc. v. SoCal IP Law Group, LLP* (2016) 3 Cal.App.5th 1240, 1250.) “If a contractual attorney fee provision is phrased broadly enough, ... it may support an award of attorney fees to the prevailing party in an action alleging both contract and tort claims...” (*Lockton v. O’Rourke* (2010) 184

Cal.App.4th 1051, 1076.) There is nothing in the clause at issue which would limit attorney fees to purely contractual claims.

Unjust Enrichment

Plaintiff's theory as to why it is entitled to attorney fees on the unjust enrichment cause of action is a bit unclear. His opposition is similar to that of the demurrer wherein he argues that the cause of action is properly stated. While the Court agreed that the unjust enrichment cause is properly stated (see line 13), this does not explain why Plaintiff would be entitled to attorney fees.

The unjust enrichment claim is an equitable claim that cannot rely upon a contract. "As a matter of law, an unjust enrichment claim does not lie where the parties have an enforceable express contract." (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370 citing *California Medical Assn. v. Aetna U.S. Healthcare of California, Inc.* (2001) 94 Cal.App.4th 151, 172.) Since there cannot be a contract at issue for the unjust enrichment cause of action to stand, there cannot be a contract which allows for an award of attorneys' fees related to such a claim.

Conclusion

Based on the above, Defendant's motion is:

- **GRANTED** as to the allegations relating to punitive damages;
- **DENIED** as to the request for attorneys' fees on the second cause of action for intentional interference with contractual relations; and
- **GRANTED** as to the request for attorneys' fees on the third cause of action for unjust enrichment.

Plaintiff is granted leave to amend regarding the request for punitive damages as to the interference claim only. Leave is denied as to the request for attorneys' fees on the unjust enrichment cause of action.

15. 9:00 AM CASE NUMBER: C25-02383
CASE NAME: IVORY EVANS VS. SUNIL YADAV
HEARING ON DEMURRER TO: 1ST, 2ND, 4TH, AND 5TH CAUSES OF ACTION OF PLAINTIFF'S COMPLAINT
FILED BY: YADAV, SUNIL L.
TENTATIVE RULING:

Defendant Sunil L. Yadav ("Defendant") filed a Demurrer to plaintiff Ivory Evans' ("Plaintiff") Complaint on November 26, 2025 (the "Demurrer"). The Demurrer was set for hearing on April 13, 2026.

Background and Analysis

No opposition was filed. However, Plaintiff filed a First Amended Complaint on March 30, 2026.

A party may amend its pleading once without leave of the court at any time before the answer,

demurrer, or motion to strike is filed, or **after a demurrer** or motion to strike **is filed but before the demurrer** or motion to strike **is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer** or motion to strike. Code Civ. Proc. § 472(a).

When the plaintiff files an amended complaint in response to a defendant's demurrer before the hearing on the demurrer, that hearing should be taken off calendar because the amended complaint supersedes the complaint to which the demurrer was directed. *People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 12.11.

Accordingly, the Court orders the Demurrer off-calendar as moot in light of the amended complaint.

Disposition

The Court finds and orders as follows:

1. The Demurrer is ordered OFF-CALENDAR as moot.
2. The Court shall issue the order after hearing.

16. 9:00 AM CASE NUMBER: C25-02627

CASE NAME: JAMES BREEN VS. HEATHER BREEN

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: BREEN, HEATHER

TENTATIVE RULING:

The demurrer of Defendants Heather Breen and Adrienne Slavens to the complaint of Plaintiff James Breen is **SUSTAINED WITHOUT LEAVE TO AMEND.**

Background

This case arises from the dissolution of the marriage of Plaintiff James Breen and Defendant Heather Breen, and the domestic conflict that preceded and accompanied it. Plaintiff seeks monetary damages against Heather and her mother Adrienne Slavens (Adrienne), alleging that their conduct during the parties' separation in 2023 constituted intentional infliction of emotional distress. (Complaint, p. 1:21-22.)

Plaintiff makes the following allegations. From January 2023 to July 2023, Heather Breen exerted "coercive control over the parties' small shared two-bedroom apartment. Her undiagnosed sound sensitivity disorder made it difficult for her to be in the same room with him. She was sensitive to every sound including chewing and typing and would not allow him to be in the small kitchen at the same time as her because his presence bothered her. (*Id.* ¶ 2.)

During this same period, Heather Breen controlled the couple's finances and gave Plaintiff an allowance of \$1,000 dollars a month. When he went over, she would berate him and tell him he was spending too much. (*Id.* ¶ 3.)

Heather would isolate herself in a bedroom where she slept with Clara, their eleven year old daughter who has special needs. Due to her sound sensitivity disorder, Heather was bothered by his presence.

Throughout January 2023, plaintiff did not feel welcome in his own home and either spent time walking the streets of Walnut Creek or stayed in his bedroom when he was home. When he was in that bedroom, Heather Breen would make sure to close the door, making him feel shut out and disconnected from Clara. (*Id.* ¶¶ 2-4.)

On February 3, 2023, plaintiff alleges Heather took Clara without notice, leaving the apartment empty with no note while plaintiff was returning from what he describes as a four-hour walk in San Francisco. Plaintiff does not explain what prompted the walk or what, if anything, occurred in the apartment before he left. (*Id.* ¶ 5.) He alleges she disclosed only that she was at an undisclosed hotel and refused to reveal her location or permit contact with Clara, who is nonverbal and could not communicate with him independently. Plaintiff characterizes this as the first of two “abductions.” He alleges he “wanted to be supportive and agreed to let Heather go on vacation for a week in Central Valley with Adrienne...,” during which time his access to Clara was limited to occasional photographs. (*Id.* ¶ 7.)

He alleges that Heather an email on February 3, 2023 admitting to having misophonia and acknowledging that “it was tough to live with.” (*Id.* ¶ 8.) Plaintiff alleges he agreed to marriage counseling and attended a solo preparatory session with Karin Schlanger, Heather's marriage counselor, on May 31, 2023, but that no joint counseling session was scheduled in the nearly six weeks that followed despite that agreement, and that Heather's sound sensitivity issues worsened during this period. He complains that he was assigned a kitchen schedule for cooking his own dinner and that his wife did not say goodnight to him before going to bed. (*Id.* ¶¶ 9-10.)

On July 8, 2023, Plaintiff alleges the parties had a verbal disagreement about the failure to schedule joint counseling sessions, after which he left the apartment. Upon returning five hours later he found the apartment empty with no note. Heather did not answer his calls and sent a text stating she and Clara were staying at an undisclosed hotel. (*Id.* ¶¶ 11-12.) Plaintiff characterizes this as the second abduction.

On July 9, 2023, Heather texted that she was going to stay with Adrienne in San Diego, then refused to respond further, taking Clara on what plaintiff describes as a “forced” five hundred mile drive. (*Id.* 13.) He alleges he was unaware of Clara's actual location for over 24 hours and spent that period in tears and unable to sleep. (*Id.* ¶14.)

On July 10, 2023, “due to the fact that [he] wasn't sure what Heather [] was going to do next,” plaintiff went to the bank and divided the parties' joint checking account, at which point he learned for the first time that it held fifty-six thousand dollars. (*Id.* ¶15.) Plaintiff does not allege that Heather had taken or threatened to take any action with respect to the parties' finances before he divided the account.

Plaintiff alleges that Heather “finally” contacted him “that same day” in response to learning of the account division, describing the drive to San Diego as difficult and it had been difficult to care for Clara during the trip. (*Id.* ¶ 16.)

Plaintiff alleges he lost a week of work in July 2023 due to the shame and humiliation he felt that his

wife had taken their child. He attempted to reason with Heather and remind her that he had been supportive of her in the past and had agreed to go to marriage counseling, which she never followed up on. He alleges he was deeply depressed and within a week had to remove all family photos, toys, and remembrances of Clara from his sight and put them in Clara's bedroom so they would be out of view. (*Id.* ¶18.)

From July 8 through August 3, 2023, plaintiff saw Clara in one FaceTime call. He acknowledges that Heather offered to let him have FaceTime calls but characterizes them as painful because Clara is nonverbal and does not respond unless prompted to do so by her mother. The single FaceTime call that took place ended up being painful because Clara barely acknowledged him during the call. (*Id.* ¶19.)

During this same period, plaintiff alleges Adrienne made no effort to reach out to him. He notes that before 2023 he and Adrienne were close, having lived together with her and her husband Dennis Slavens for four years, during which time he assisted in Dennis's care as his Parkinson's worsened, as he was a stay-at-home father and happy to help. He complains that despite this history, Adrienne did nothing to assist in advocating for Clara's return during the entire month of July 2023. (*Id.* ¶ 20.)

Plaintiff alleges that during this period he was struggling with depression made worse by the fact that he was battling what he thought to be hypomania, which he identifies as bipolar disorder type 2, a condition he had diagnosed himself after much research in his early thirties. He had never had a therapist or a psychiatrist in his entire life and had never taken medication. He alleges he was able to manage his triggers and live a productive, stable life. (*Id.* ¶ 21.)

Plaintiff alleges that Heather's worsening sound sensitivity over the last months of the marriage became a trigger for him as she started to "gaslight" him into thinking he was threatening or dangerous, pushing him into self-blame and suicidal ideation over the month of July 2023 after she took Clara five hundred miles away with no warning. (*Id.* ¶22.)

On July 17, 2023, the parties attended a joint counseling session with Karin Schlanger at which Plaintiff alleges he stated he would do anything to save the marriage and secure Clara's return. (*Id.* ¶ 23.) He alleges Heather's stated condition for return was that he agree to attend individual therapy, which he agreed to do, but that the therapist's response to his agreement was belittling and manipulative, causing him to hang up on the session. (*Id.* ¶¶ 24-25.) While searching for a therapist, Plaintiff alleges he sent Heather an email disclosing details about what he believed was hypomania, *apologizing for causing her to flee*, and stating he was more a danger to himself than to anyone else. (*Id.* ¶ 26, emphasis added.)

On July 22, 2023, Heather asked Plaintiff whether he would be willing to give her and Clara the apartment for the month of August while they figured things out. Plaintiff refused to leave, stating he had done nothing wrong and had never been a danger to Heather or Clara, and asked what the metric would be to get back into his own home if he had done nothing wrong and had actively worked to save the marriage by attending counseling. (*Id.* ¶¶ 27- 28.)

On July 23, 2023, plaintiff alleges that because he was feeling alone and his wife would not listen to him, he attempted to take his own life by taking sleeping pills and trying to smother himself with a plastic bag, writing what he describes as the first suicide note he had ever written in his life. He alleges he failed at that attempt, did not call for help, and did not tell Heather because he felt it would be used against him. He alleges the suicidal ideation passed and he did not attempt to harm himself again in 2023. (*Id.* ¶¶ 29-30.)

Due to Heather's ultimatum that she would not return home until he went into therapy, plaintiff signed up for BetterHelp and requested a therapist with experience in bipolar disorder, and was assigned to a therapist named Elmer Otey. He informed Heather that he had signed up and would be attending his first session, and also told her that a close family friend named Ron Rowell had agreed to let him stay overnight at his house if Heather felt unsafe and needed to be alone in the apartment upon her return. (*Id.* ¶ 31-32.)

On July 30, 2023, plaintiff contacted Heather to inform her he had attended his first session with Elmer Otey. Heather rescinded her offer to return if he went into therapy, stating that lines in the sand do not work, and still refused to bring Clara home from San Diego. On August 1, 2023, Heather stated she would return by the end of the week and would let him know when she was on the road. (*Id.* ¶¶ 33-34.)

On August 3, 2023, Heather texted with little warning that she and Adrienne were driving back that day. Plaintiff alleges he was “not asked for permission,” that Adrienne's inclusion implied he was unsafe in his own home, and that upon arrival Heather was “polite but not talkative” and focused primarily on Adrienne. (*Id.* ¶¶ 35-36.) He alleges the defendants then reorganized Clara's small bedroom to accommodate all three of them sleeping together, rejecting his offer to swap bedrooms, and spent the majority of their time behind a locked door while he heard laughter through the wall, feeling like an unwelcome guest in his own home. (*Id.* ¶¶ 37-39.)

On August 4, 2023, Plaintiff requested money from his own paychecks, which were still being deposit into Heather's account. He alleges Heather demanded an itemized list of his July expenditures before she would pay over those funds, which he declined to provide on the grounds that it was his own money. When she refused to discuss it “face to face” he changed his direct deposit arrangement that same evening. (*Id.* ¶¶ 40-42.)

On August 5, 2023, Heather asked whether Plaintiff would move out, stated she did not want to discuss the separation while cohabitating, and indicated she was giving notice to move in September. (*Id.* ¶ 43.)

Because he had been told he could not discuss the separation and that Heather was giving notice, plaintiff spent most of his time looking for new housing or staying in his bedroom. He alleges that most days around 6:00 p.m. after dinner, Heather would ask if he wanted her to bring Clara in for a visit. Rather than accepting these offers as genuine, plaintiff alleges it was evident to him that Heather was making them only to create a favorable record for the court when the two separated or divorced.

(*Id.* ¶ 44.)

On August 5, 2023, after Plaintiff contacted the apartment manager to report Adrienne's presence as an unauthorized guest, Heather warned him that involving outside parties would force her to take legal action. Plaintiff alleges that this threat was designed to silence him, and that it did. He further alleges that Heather's statement that her mother was staying because she did not feel safe alone with him caused him additional emotional distress because, in his view, it implied he was dangerous. (*Id.* ¶¶ 45-46.)

Plaintiff alleges that Heather and Adrienne, who had announced they were moving out, continued packing up the apartment and moving things into storage, filling it with boxes. Plaintiff found the sight of two people packing their belongings emotionally distressing, describing it as feeling like his life was being torn apart and that he was powerless to stop it. (*Id.* ¶ 47.)

Plaintiff thereafter located a new apartment in San Francisco, submitted an application, and informed Heather he would be moving out with a move date of September 5, a few days after she had indicated she planned to give notice herself. Heather pointed out that she had not yet given notice to the manager and that because plaintiff had not given her thirty days' notice he would be responsible for overlapping rent at the old apartment in addition to first, last, and deposit at his new apartment. She declined to absorb these costs on his behalf. Plaintiff characterizes her refusal to do so as an unreasonable demand. (*Id.* ¶¶ 48-49.)

On August 22, 2023, plaintiff was working from home and went into the kitchen area to work remotely. Heather and Adrienne were eating breakfast in the living room, focused on their phones, while Clara sat in a chair and ate breakfast across from them. (*Id.* ¶ 50.) When Heather went to take a shower, plaintiff used the opportunity to say good morning to Clara, who mumbled that she was wet. Plaintiff reached down and discovered that Clara had soaked through her diaper, wetting both her clothes and the chair beneath her. Plaintiff immediately changed Clara and, as he passed Adrienne, mumbled a comment that it was great that people were on their phones and not watching Clara. Adrienne left the room and went into Clara's shared bedroom. After plaintiff changed Clara, Clara went into the shared bedroom with Adrienne, leaving plaintiff alone in the living room. (*Id.* ¶¶ 51- 52.)

Plaintiff then moved his laptop to the living room couch, moving what he describes as junk out of the way due to the disarray from the packing, and set a small basket of books to one side on the floor so he could work at the coffee table. (*Id.* ¶ 53.) Minutes later, Adrienne came out of the shared bedroom, focused on something on the floor, and began taking photographs with her phone of the basket, which had fallen over. She then began taking photographs of plaintiff sitting at the coffee table. Plaintiff asked what she was doing and she did not answer, continuing to photograph him. (*Id.* ¶¶ 54-55.) Plaintiff told her to stop. After a minute she turned to go back into the bedroom, then turned back and called him an ass before disappearing into the shared bedroom. (*Id.* ¶ 56.) Plaintiff then stood up, saw the tipped over basket, and shouted to the bedroom that it was just a basket on its side and not something he had thrown in any violent way. There was no response from the shared bedroom. (*Id.* ¶ 57.)

When Heather came out of the shower, plaintiff immediately told her that Adrienne had forced a camera in his face and had taken photographs to imply he had done something wrong with a basket, and that Adrienne had refused to stop despite being told to do so. (*Id.* ¶ 59.) Heather declined to speak to her mother about the incident, telling plaintiff to talk to her mother himself and stating she had nothing to do with it. (*Id.* ¶ 60.) Adrienne then came out of the bedroom and a verbal disagreement ensued between her and plaintiff about why she had taken photographs of him in his own apartment. Adrienne refused to answer directly and repeated only that this is why I am here, which plaintiff characterizes as an accusation about his temper and Heather's feeling of safety. Plaintiff alleges that at no point did he lose his temper during the argument. (*Id.* ¶¶ 61-62.)

Plaintiff then turned to speak to Heather, who was getting Clara ready for an appointment. When plaintiff raised the fact that Clara had wet herself through her diaper while Heather and Adrienne were on their phones, Heather suddenly clutched Clara to her chest from behind and shouted twice that they would have to pry Clara from her dead hands. (*Id.* ¶ 63.) Plaintiff alleges he had never threatened to take Clara away from Heather, and says this statement has been raised in multiple family court filings and ignored by the court. (*Id.* ¶ 64.)

While Heather was preparing to leave, Adrienne stepped in to reassure Clara, making statements about how she knew daddy was yelling and that it was okay, which plaintiff characterizes as placing blame on him and ignoring Adrienne's own responsibility in the altercation. (*Id.* ¶ 66.)

Plaintiff alleges he was visibly shaken by the altercation and realized he needed to get out of the apartment, stating that Heather and Adrienne had made the apartment unlivable and that he was terrified he would be falsely accused of trying to hurt his wife or daughter. He contacted his new San Francisco landlord, who confirmed the offer to move in early at no extra cost, and ordered an inflatable mattress to be delivered the next day. He then sent himself a detailed email documenting what had occurred that morning to protect himself from false accusations. (*Id.* ¶¶ 68-70.)

Heather responded to that email and did not disagree with plaintiff's version of events, stating only that he had not understood what she meant by the statement that they would have to pry Clara from her dead hands. Plaintiff stayed in the larger bedroom and away from Heather and Adrienne. His inflatable mattress arrived the next day and he left that evening. The following evening, he slept in his empty studio apartment on the inflatable mattress, which was defective and leaked consistently, but alleges he would rather have slept on a half-inflated air mattress in an empty studio than return to the apartment. (*Id.* ¶¶ 71-73.)

On September 2, 2023, Heather asked when he wanted to set up visits with Clara. Plaintiff told her that the events of July and August were too much for him and that he did not want to come back to the apartment and informed her he needed time away and would return for visits on October 1, 2023. Plaintiff alleges Heather ignored this message and contacted him on September 15, 2023, stating that her lawyer was telling her she needed to make a decision about the divorce. Plaintiff told her he would not discuss anything with her until he returned. Heather and Adrienne stayed in the shared apartment until October 1, 2023, remaining an additional month after Heather had said she was

giving notice and leaving in September, which plaintiff characterizes as staying after having “forced” him out. (*Id.* ¶ 74- 76.)

Heather filed for marital dissolution in Contra Costa Superior Court on November 15, 2023. Plaintiff alleges that her original declaration contained no mention of what he characterizes as the two abductions of Clara and made no claims of domestic abuse, instead stating that plaintiff was simply unhappy with her mother living with them and that he had voluntarily chosen not to see Clara for the month of September. Plaintiff characterizes this as perjury by omission at the direction of Heather's legal counsel. (*Id.* ¶ 77.)

On February 1, 2024, Plaintiff alleges he voluntarily admitted himself to Hayvenwick Hospital for seven days due to suicidal ideation, which he attributes to the abductions and what he characterizes as a parental alienation campaign. He alleges he was diagnosed by the lead psychiatrist there as hypomanic, consistent with a self-diagnosis he had made years earlier, and that this hospitalization was subsequently used against him at the first custody hearing on March 11, 2024, resulting in an order for supervised visitation. Plaintiff was re-diagnosed with Complex PTSD by Dr. Grant Meredith in March 2024 and alleges he stabilized by May 2024 after medication adjustment. (*Id.* ¶¶ 78-81.)

On July 24, 2025, plaintiff alleges a family court hearing was held at which he sought to terminate the supervised visitation order that had been in place for over a year, and at which he alleges Heather perjured herself to maintain it. On August 1, 2025, Judge Gina Dashman ordered supervised visits to continue until a November 2025 review hearing and noted that plaintiff had the option of appointing a non-professional supervisor if both parties agreed. Plaintiff alleges Heather refused to agree to a non-professional supervisor, leaving him with only a professional supervisor who was available for one hour on alternating Friday afternoons, requiring him to take leave from work to attend. Plaintiff characterizes the resulting limitations on his access to Clara as causing him further emotional distress. (*Id.* ¶¶ 82-86.)

Plaintiff opens his demand for relief by stating that defendants "have not acknowledged the effect of their actions" on him, and that the only way either defendant will "learn their lesson and take accountability" is through the financial payment of damages. (Complaint, p. 19.) Plaintiff proposes damages using a per diem method based on his current hourly salary of \$51 per hour, applied across four periods. For the period from January 2023 through July 2023, he seeks \$100 per day, which he characterizes as slightly less than two hours of his salary. For the period from July 2023 through September 2023, covering the second departure with Clara, Heather's return with Adrienne Slavens, and the circumstances of his departure from the shared apartment, he seeks \$200 per day. For the seven days of his February 2024 hospitalization at Hayvenwick Hospital he seeks \$1,248 per day. For the period from August 1 through November 1, 2025, representing three months of supervised visitation he attributes to Heather's allegedly perjured testimony, he seeks \$51 per day. His total demand across all four periods is \$49,326. (*Id.*, pp. 19-20.)

Defendants now demur to the complaint in its entirety, arguing that none of the conduct alleged meets the legal threshold for the tort of intentional infliction of emotional distress, that the complaint

is uncertain and fails to apprise defendants of the claims they are being asked to meet, and that the action is, in substance, nothing more than a rerun of the family law case pending in the family law division of this Court.

Meet and Confer

California Code of Civil Procedure section 430.41, subdivision (a) requires the parties to meet and confer in good faith before the filing of a demurrer in an attempt to informally resolve the objections raised therein. A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer. (Code Civ. Proc., § 430.41 (a)(4).)

Plaintiff has filed a statement asserting that defense counsel refused to engage in a substantive meet and confer and filed a statement misrepresenting that a substantive meet and confer had occurred. The court declines to resolve those competing characterizations of events. Regardless of the adequacy of the meet and confer process, the court will consider the merits of the demurrer.

Legal Standard

A demurrer is properly sustained when "[t]he pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e).) In ruling on a demurrer, the court assumes the truth of properly pleaded factual allegations, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.)

It is an abuse of discretion to sustain a demurrer if there is a reasonable possibility that the defect can be cured by amendment. (*Ibid.*) The burden is on the plaintiff to demonstrate how the complaint can be amended to state a valid cause of action. (*Ibid.*)

Analysis

The complaint does not clearly identify its cause of action but refers throughout to the infliction of emotional distress and to outrageous conduct by the defendants. The complaint is therefore properly construed as alleging the state law tort of intentional infliction of emotional distress. "The elements of a cause of action for intentional infliction of emotional distress are (1) the defendant engages in extreme and outrageous conduct with the intent to cause, or with reckless disregard for the probability of causing, emotional distress; (2) the plaintiff suffers extreme or severe emotional distress; and (3) the defendant's extreme and outrageous conduct was the actual and proximate cause of the plaintiff's extreme or severe emotional distress." (*So v. Shin* (2013) 212 Cal.App.4th 652, 671.) As the California Supreme Court has explained, this tort imposes liability only for "conduct exceeding all bounds usually tolerated by a decent society, of a nature which is especially calculated to cause, and does cause, mental distress." (*Cole v. Fair Oaks Fire Dept.* (1987) 43 Cal. 3d 148, 155 (Cole).) Further, behavior "may be considered outrageous if a defendant . . . abuses a relation or position which gives him power to damage the plaintiff's interest." (*Id.*)

Plaintiff frames the purpose of defendants' alleged conduct in his opening paragraph. He states that "the reason for inflicting emotional distress was to force him out of the shared apartment in August

2023 and to begin a parental alienation campaign to keep him away from his special-needs daughter." (Complaint, Introduction, Lines 22-24.) His damages theory confirms this framing. Two of his four claimed damages periods are not grounded in discrete tortious acts at all. He seeks compensation for a psychiatric hospitalization he expressly attributes to the abductions and the parental alienation campaign against him after Heather returned from San Diego in August 2023. (*Id.* ¶ 78.) He seeks further compensation for three months of court-ordered supervised visitation he attributes to Heather's allegedly perjured testimony in the family court proceedings. (*Id.* ¶ 82.) Plaintiff is thus asking this court to compensate him for damages he claims resulted from the loss of his parental relationship.

As to Heather Breen, plaintiff's claims are for interference with his parental relationship and his right to the society and affection of his daughter. He alleges she took Clara from the shared apartment on two occasions without notice, restricted his access to Clara during the periods that followed, and orchestrated what he himself characterizes as a parental alienation campaign to keep him away from his daughter. California does not permit a claim for intentional infliction of emotional distress to lie on the basis of one parent's interference with the other's parental rights.

In *In re: Marriage of Segel* (1986) 179 Cal.App.3d 602, the appellant alleged the respondent, the appellant's husband, caused the appellant severe emotional distress by alienating the parties' child against her. The trial court sustained the respondent's demurrer and dismissed the appellant's action. (*Id.* at p. 606.) The Court of Appeal held the appellant's fourth cause of action for intentional infliction of emotional distress failed to state a cause of action. (*Id.* at p. 607.) The Court noted that the primary right the appellant sought to enforce "is her right to the society and affection of her child, namely, the right of filial consortium" and California does not recognize the right of filial consortium as a basis for a cause of action. (*Id.* at p. 607.) The Court cited *Borer v. American Airlines, Inc.* (1977) 19 Cal.3d 441, 447 and *Baxter v. Superior Court* (1977) 19 Cal.3d 461, noted they were not on point to the current situation, but "nevertheless, indicate a public policy against awarding damages in loss of filial consortium situations except in the most narrow instances of providing a remedy for specific and measurable economic losses; but not in situations where the claim involves intangible injuries to a parent-child relationship." (*Id.* at p. 608.) The Court further stated that appellant sought to enforce the primary right of visitation with her child, and the claim respondent damaged her filial relationship with the child by interfering with her visitations. (*Id.*) The Court concluded that recognizing this as a cause of action would undermine the Family Law Act, "which is designed, among other things, to regulate and supervise the care, custody and financial support of minor children whose parents are the subject of dissolution proceedings." (*Id.* at p. 609.) The Court further noted that a parent who has difficulties with visitation should direct those issues to the family law court, "[o]therwise, disputes over visitations could be used as a vehicle for claiming monetary damages, a rather distasteful resolution of a problem which is supposed to involve primarily the best interests of the child, and not the parent." (*Id.*)

Plaintiff expressly characterizes both departures as child abductions. (Complaint, Legal Claims, ¶1.) To the extent plaintiff's complaint can be read to allege a cause of action under Civil Code section 49,

that claim fails as a matter of law. Civil Code section 49, subdivision (a) forbids the abduction or enticement of a child from a parent, or from a guardian entitled to its custody. The seminal case interpreting Civil Code section 49 is *Rosefield v. Rosefield* (1963) 221 Cal. App. 2d 431. At the time the complaint in that case was filed in 1962, the allegedly abducted child was two and one-half years old. The parents had separated shortly after their marriage in 1959, before the child was born. The mother had physical custody of the child at all material times until the asserted abduction, which occurred in 1961. In 1960, the father induced his wife to enter a conditional reconciliation for the express benefit of the child. In February 1961, the father and his father, the child's grandfather, willfully, fraudulently and maliciously abducted the child from her mother, and did harbor, secrete and conceal her from her mother, depriving the mother of the society and services of the child. (*Id.* at 432-433.) Conspiracy to do these things was alleged in a separate count, and the complaint further alleged that the mother had been put to the expense of about five thousand dollars in efforts to locate the child. The superior court awarded legal care and custody of the child to her mother in April 1961, but by that time the child had been taken away and concealed. The child was apparently still missing at the time of the appellate proceedings. (*Id.* at 433.)

The grandfather argued that a charge of conspiracy could not be made against a party who merely agrees or contrives with the father to take the child. (*Id.* at 435.) Rejecting this contention, the Court of Appeal reasoned that it was a legal wrong for the husband and father to abscond with the child, and that the grandfather would be liable in damages even for the father's actions if conspiracy were shown. The court was careful, however, to limit its holding: "of course, not every transportation of a child by one parent causing the other parent some loss of custody and association with the child would be wrongful. If, however, one parent makes away with the offspring, removes it effectually from judicial control, conceals it, and leaves the other parent utterly bereft of the means of enjoying any of the privileges of parenthood, it is folly to say that the decamping parent is merely exercising his equal right to the custody of the child. There is no equality about it." (*Id.*)

Here, although Plaintiff's complaint uses conclusory terms such as abduction, there is no allegation of the type of permanent absconding or concealment at issue in *Rosefield*. On the contrary, during the first departure in February 2023, plaintiff expressly agreed to the arrangement, which resolved into a consensual vacation in the Central Valley. (Complaint ¶ 7.) During the second departure, Heather disclosed her destination by text the following day, allowed plaintiff at least some contact with Clara via FaceTime, participated in joint counseling with plaintiff nine days after leaving, and returned voluntarily within twenty-six days. (*Id.* ¶¶ 13, 19, 23, 34-35.) This is not making away with the child, removing it from judicial control, concealing it, or leaving the other parent utterly bereft of the means of enjoying any of the privileges of parenthood. (*Rosefield, supra*, at 435.) Simply put, mother's temporary stay with her mother during a marital breakdown, voluntarily concluded within weeks and accompanied by ongoing parental communication and the prompt filing of a dissolution action in the family law court, does not constitute an actionable abduction under Civil Code section 49.

Stripping away the parental interference allegations that *Segel* bars as a matter of law, what remains against Heather are allegations of unhappy marital cohabitation, a domestic budgeting disagreement,

and a legal threat made in response to plaintiff's attempt to enlist the apartment manager to force his mother-in-law out of the shared apartment. This tort imposes liability only for conduct exceeding all bounds usually tolerated by a decent society, of a nature which is especially calculated to cause, and does cause, mental distress. (*Cole, supra*, at 155 n. 7.) A spouse whose sound sensitivity disorder made cohabitation difficult, who provided her husband a monthly allowance and berated him for overspending, who slept behind a closed door in her daughter's bedroom, and who responded to a potential landlord complaint about her mother with a legal threat, has not engaged in such conduct.

The financial control allegations warrant particular attention because Plaintiff's own admissions defeat them. Plaintiff alleges Heather exercised total control over the parties' finances throughout the marriage. Yet on July 10, 2023, he walked into the bank and divided the joint account without obstruction, discovering in the process that it held fifty-six thousand dollars. (Complaint ¶15.) On August 4, 2023, when Heather refused to release funds from his paycheck deposits, he changed his direct deposit arrangement that same evening without difficulty or interference. (*Id.* ¶ 42.) A plaintiff who retains at all times the unobstructed ability to access joint funds and redirect his own income has not been subjected to financial control in any legally cognizable sense.

To the extent Plaintiff's complaint rests on allegations that Heather committed perjury in the family court proceedings, those allegations are barred by the litigation privilege. Civil Code section 47, subdivision (b) bars a civil action for damages for communications made in the course of judicial proceedings and "in any other official proceeding authorized by law." (Civ. Code § 47(b)(2), (3).) The privilege is absolute and applies regardless of whether the communication was made with malice or the intent to harm. (*Wise v. Thrifty Payless, Inc.* (2000) 83 Cal.App.4th 1296, 1302.)

Plaintiff's claims against Adrienne fare no better. Plaintiff alleges that Adrienne, with whom he describes having had a close prior relationship, made no effort to reach out to him or advocate for Clara's return during the month of July 2023. (Complaint ¶ 20.) The allegations do not establish that Adrienne abused any position that gave her power over plaintiff's interests. She had no legal authority over Plaintiff's access to his daughter and no obligation to intercede on his behalf in a marital dispute between her daughter and her daughter's husband. Neither do the allegations support a conclusion that her conduct was especially calculated to cause Plaintiff mental distress.

The central act alleged against Adrienne individually is the August 22, 2023 basket incident. Plaintiff alleges that after a small basket of books fell over, Adrienne photographed the basket and then photographed him at the coffee table, refused to explain herself when asked, called him an ass, and returned to the bedroom. Liability for intentional infliction of emotional distress "does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities." (*Hughes v. Pair* (2009) 46 Cal. 4th 1035, 1050-51; CACI 1602 ["Outrageous conduct does not include trivialities such as indignities, annoyance, hurt feelings, or bad manners that a reasonable person is expected to endure"].) A house guest who photographs a fallen basket, declines to explain herself, and directs an epithet at a family member has not engaged in conduct so extreme as to exceed all bounds usually tolerated in a civilized community.

As the Court of Appeal has observed, there is "[a] recurrent theme in the family law opinions of this court ... disfavoring ... civil actions which are really nothing more than reruns of a family law case. [These decisions] all stand for the central idea that family law cases should not be allowed to spill over into civil law, regardless of whether the family law matter may be characterized as an action for fraud ..., malicious prosecution ..., or securities law violations... Almost all events in family law litigation can be reframed as civil law actions if a litigant wants to be creative with various causes of action. It is therefore incumbent on courts to examine the substance of claims, not just their nominal headings." (*Neal v. Superior Court* (2001) 90 Cal.App.4th 22, 25.)

The parties here are involved in a pending dissolution and custody matter in the Family Law Division of this Court, Case No. D23-04556. The present action arises out of the same marital relationship and parenting disputes that have been repeatedly addressed in those proceedings, during essentially the same period of conflict. Whatever heading Plaintiff places on his claims, the substance of this action appears to be a rerun of the family law case.

Disposition

Plaintiff has neither requested leave to amend nor offered any argument as to how the defects in the complaint could be cured by amendment. (*Churchman v. Bay Area Rapid Transit Dist.* (2019) 39 Cal.App.5th 246, 252.) Therefore, the demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND**.

17. 9:00 AM CASE NUMBER: L23-01676
CASE NAME: JEFFERSON CAPITAL SYSTEMS LLC VS. NICOLE MUNOZ
***HEARING ON MOTION IN RE: AND NTC TO SET ASIDE DEFAULT JUDGMENT**
FILED BY:
TENTATIVE RULING:

Defendant and judgment debtor Nicole L Munoz ("Defendant") filed a Motion to Set Aside Default Judgment on January 20, 2026 (the "Motion to Set Aside"). The Motion to Set Aside was set for hearing on April 13, 2026. The motion is opposed.

Background

Plaintiff Jefferson Capital Systems LLC ("Plaintiff") filed a Complaint on April 5, 2023. A default was entered against Defendant on February 9, 2024. Thereafter, a default money judgment was entered on May 13, 2024 in the total amount of \$13,092.24 (the "Judgment").

Analysis

1. Purported Lack Of Proof Of Service

The Court first addresses the contention that the default and Judgment should be set aside because of the lack of service. Defendant contends that Defendant was "never properly served." See Memorandum of Points and Authorities, Motion to Set Aside, p. 3. Defendant contends because of such lack of service and actual notice of the lawsuit, the default and Judgment are void, including

pursuant to Code of Civil Procedure section 473(d).

Defendant's supporting declaration states that Defendant moved out of the 312 N Wildwood address in Hercules, California (the "Wildwood Address"), "on or about March 2021, which was before the date of service stated in the Proof of Service. I did not reside there, receive mail there, or maintain it as my dwelling at the time of the alleged service." Declaration of Nicole Munoz filed January 20, 2026 ("Supporting Declaration") ¶¶3-4.

2. Defendant Fails To Demonstrate That Defendant Did Not Have Actual Notice Of The Pending Lawsuit and Relief on Such Grounds is Time Barred in Any Event.

The underlying Proof of Service was filed on May 1, 2023. See Proof of Service filed May 1, 2023 (the "Proof of Service"). It reflects substituted service on Defendant on April 29, 2023 at 6:29 pm. See Proof of Service, ¶5.a.

The service was done by a registered process server. See *id.* at ¶7. This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

First, Defendant offers no corroborating evidence to establish that she was no longer residing at the Wildwood Address as of April 2023. Other than the bare assertions of that fact, there was nothing further offered, such as billing statements showing Defendant's name in connection with a different address around that time period.

Indeed, Defendant's Supporting Declaration does not even identify what the new residence address was at the time. Nor does Defendant give the Court more context regarding the supposed move out in March 2021 or explain the relationship to the Wildwood Address and any other people living there in the relevant time periods.

Second, to the extent that motion contends that the original Judgment is void because of a lack of actual notice, such relief is time barred.

Relief under Code of Civil Procedure section 473.5 has certain time limits. See Code Civ. Proc. § 473.5(a) ("The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered."). Defendant's motion was brought more than two years after the entry of the subject Default Judgment.

However, longer time limits apply here. Civil Code section 1788.61 provides that "[n]otwithstanding Section 473.5 of the Code of Civil Procedure, if service of a summons has not resulted in actual notice to a person in time to defend an action brought by a debt buyer and a default or default judgment has been entered against the person in the action, the person may serve and file a notice of motion and motion to set aside the default or default judgment and for leave to defend the action." Civ. Code § 1788.61(a)(1). This statute contains longer outside time limits. See *id.* at § 1788.61(a)(2) [relief must be sought within a reasonable time, but in no event

exceeding the earlier of: (a) six years after entry of the default or default judgment against the person or (b) one hundred eighty days of the first actual notice of the action]. These longer time periods only apply in cases involving a plaintiff “debt buyer.”

A “Debt buyer” means a person or entity that is regularly engaged in the business of purchasing charged-off consumer debt for collection purposes, whether it collects the debt itself, hires a third party for collection, or hires an attorney-at-law for collection litigation. Civ. Code § 1788.50(a). “Debt buyer” does not mean a person or entity that acquires a charged-off consumer debt incidental to the purchase of a portfolio predominantly consisting of consumer debt that has not been charged off. *Id.* The record here is sufficient to establish that Plaintiff is a “debt buyer” within the meaning of Civil Code section 1788.61. Plaintiff’s own allegations include that it is not the originator of the subject debt but purchased the account from the originator and that Plaintiff is a debt buyer as defined by California Civil Code section 1788.50(a). See Complaint filed April 5, 2023, ¶19.

The Court finds that Defendant failed to seek relief within a reasonable time, not exceeding the earlier of: (a) six years after entry of the default or default judgment or (b) one hundred eighty days of the first actual notice of the action. Defendant had written notice of the entry of the Judgment by at least December 2024 and failed to bring this motion within 180 after service of post judgment collection papers. See Declaration of Flint C. Zide filed March 11, 2026. Defendant failed to demonstrate that Defendant never received any mailings sent to the Wildwood Address. And even if that were the case, Defendant admits that Defendant “first learned of this case only recently, after notifying [sic] wage garnishment deductions on [Defendant’s] pay stubs beginning in or around December 2024.” Supporting Declaration, ¶17.

Thus, Defendant’s first actual notice of the action was no later than December 2024, considerably more than 180 days before Defendant filed this motion.

3. Defendant Fails To Demonstrate That The Underlying Judgment Is Void Or Should Otherwise Be Set Aside.

The Court has authority to vacate a void judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) (“The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order.”); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In addition, a judgment may be set aside by a court if it has been established that extrinsic factors have prevented one party to the litigation from presenting their case. *In re Marriage of Park* (1980) 27 Cal.3d 337, 342. The grounds for such equitable relief are commonly stated as being extrinsic fraud or mistake. *Id.* Those terms are given a broad meaning and tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing. *Id.*; see also *Aldabe v. Aldabe* (1962) 209 Cal.App.2d 453, 474 (“Fraud or mistake is extrinsic when it deprives the unsuccessful party of an opportunity to present his case to the court.”) quoting *Westphal v.*

Westphal (1942) 20 Cal.2d 393, 397.

As discussed at length above, the evidence proffered by Defendant does not establish any grounds for the Court to conclude that the default or the default Judgment entered are somehow void. No extrinsic fraud or mistake is shown by the proffered evidence.

Disposition

The Court finds and orders as follows:

1. The Motion to Set Aside is DENIED.
2. The Court shall enter the order after hearing.

18. 9:00 AM CASE NUMBER: MSC20-00056

CASE NAME: GULINGAN VS SU

***HEARING ON MOTION IN RE: TAX COSTS IN RE CROSS-DEFENDANT SALVACION GULINGAN'S**

MEMORANDUM OF COSTS

FILED BY: SU, YING ZHONG

TENTATIVE RULING:

Defendants and Cross-Complainants Ying Zhong Su, Ziwen Yao and Rachel Xinqi Su ("Defendants") filed a Motion to Tax Costs on November 25, 2025 (the "Motion to Tax Costs") directed to the Memorandum of Costs filed by cross-defendant Salvacion Gulingan ("Gulingan") on November 14, 2025. The Motion to Tax Costs was initially set for hearing on April 6, 2026. The Motion to Tax Costs was continued by the Court for hearing on April 13, 2026. The motion is opposed.

Background

A judgment was entered in this action on November 13, 2025 (the "Judgment"). The Judgment included a money judgment in favor of plaintiff and cross-defendant Gulingan as against all of the Defendants. The Judgment determined that costs were to be awarded to plaintiff against Defendants upon post-trial request.

A Memorandum of Costs and supporting materials was filed referencing "Cross-Defendant Salvacion Gulingan" on November 14, 2025 (the "**Memo of Costs One**"). This Memo of Costs seeks a total of \$28,120.84 for various categories of specific costs.

A second Memorandum of Costs and supporting materials was filed referencing "SALVACION GULINGAN" on November 14, 2025 (the "**Memo of Costs Two**"). This Memo of Costs seeks a total of \$13,620.07 for various categories of specific costs.

The Motion to Tax Costs is supported by the Declaration of Lubna Jahangiri filed November 25, 2025 with the Motion to Tax Costs (the "Supporting Declaration"), followed by a supplemental Declaration filed December 1, 2025 (the "Supp. Supporting Declaration").

Plaintiff filed an Opposition on December 4, 2025, along with the Declaration of Alberto Reyna ("Reyna Decl. re Costs").

Defendants filed a Rely on April 6, 2026.

Analysis

When awarding costs, a court must apply the following principles: (1) costs are allowable if incurred, whether or not paid; (2) allowable costs must be reasonably necessary to the conduct of the litigation, not merely convenient or beneficial to its preparation, and (3) allowable costs must be reasonable in amount. See CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.17; see Code Civ. Proc. § 1033.5. If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 338; see CJER Civ. Pro.—Trial, § 16.18.

Disposition

The Court finds and orders as follows:

1. The **PARTIES ARE ORDERED TO APPEAR.**

19. 9:00 AM CASE NUMBER: MSC21-01664
CASE NAME: DUGGAN VS. BDM ASSOCIATION
***HEARING ON MOTION IN RE: BIFURCATE**
FILED BY: BDM ASSOCIATION, INC, A CALIFORNIA NONPROFIT MUTUAL BENEFIT CORPORATION
TENTATIVE RULING:

Denied as moot given the parties' stipulation and Court's order regarding bifurcation.

20. 9:00 AM CASE NUMBER: MSC21-02668
CASE NAME: RENEE COTTON VS. MONICA MARSHALL
HEARING ON SUMMARY MOTION
FILED BY: GHC OF WALNUT CREEK, LLC.
TENTATIVE RULING:

Before the Court is a motion for summary judgment filed by defendants GHC of Walnut Creek, LLC and Life Generations Healthcare LLC. For the reasons set forth, the motion is **denied**.

Background

Plaintiff Renee Cotton alleges her claims individually "and/or as the surviving heir and/or dependent" of Dorothy Marshall, the decedent, "and/or as personal representative and successor in interest" of Dorothy Marshall ("Marshall" or "Decedent"). (First Amended Complaint ("FAC") ¶ 2.) The FAC, the operative complaint in the case, alleges three causes of action for professional negligence, elder abuse, and wrongful death. The Court sustained a demurrer to the FAC by GHC of Walnut Creek, LLC and Life Generations Healthcare LLC to the first and second causes of action against them for professional negligence and elder abuse and neglect under the Elder Abuse and Dependent Adult Civil Protection Act, Welfare & Institutions Code section 15600, *et seq.* ("Elder Abuse Act"). There remains

one cause of action for wrongful death against defendants GHC and Life Generations. (Def. Separate Statement ("SS") of Undisputed Material Facts ("UMFs"), UMFs 2, 5, 6; Pl. Resp. to UMFs 2, 5, 6.)

Generally, Plaintiff alleges that Dorothy Marshall, who was approximately 85, had a stroke on September 11, 2020 and cardiac arrest in January 2021. (FAC ¶ 13.) Thereafter, she was admitted to various hospitals and other healthcare facilities for care and treatment, including to a GHC facility in Walnut Creek from January 27, 2021 to February 9, 2021 (14 days), and from February 13, 2021 to March 20, 2021 (35 days). Dorothy Marshall died more than eight months later on November 27, 2021. (FAC ¶ 22.)

GHC and Life Generations move for summary judgment. Plaintiff opposes the motion.

Legal Standards for Ruling on Defendants' Motion

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant meets this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue of fact exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

The issues to be considered on a motion for summary judgment are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661.) The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference . . . ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen v. Five Brooks Stable, supra*, 159 Cal.App.4th at 1483.)

Request for Judicial Notice

Moving parties request that the Court take judicial notice of the initial complaint, the copy of Ms. Marshall's death certificate, and the FAC. The Court **denies** the request as to the initial complaint, as that complaint has been superseded by the FAC and has no relevance to the issues subject to the motion. (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [judicial notice denied where "the requests present no issue for which judicial notice of these items is necessary, helpful, or relevant"].) The Court **grants** the request as to the death certificate and the

FAC, subject to the limitations on judicial notice stated in the case law. (*See, e.g., StorMedia Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [existence of document judicially noticeable, but not the truth of its contents or its proper interpretation where the truth is disputable, or the contents subject to interpretation]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same].)

Procedural Notes

A. Reply Separate Statement

Code of Civil Procedure section 437c as amended effective January 1, 2025 states in relevant part, "The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers." (Code Civ. Proc. § 437c(b)(4) [emphasis added].) Even if Moving Parties' reply separate statement does not include additional material facts or new evidentiary matter, it includes extensive argument that, if considered, would violate the letter and spirit of the reply page limitations on a summary judgment motion. Further, Code of Civil Procedure section 437c, read as a whole, together with California Rule of Court, Rule 3.1350, do not indicate that argument, rather than facts and evidence, is properly included in a separate statement. The Court therefore does not consider the reply separate statement.

B. Evidentiary Objection in Plaintiff's Response to UMF 123

Plaintiff's response to UMF 123 states an evidentiary objection to a statement in Ms. Dennin's declaration in support of the motion, which does not comply with Rule 3.1354 of the California Rules of Court applicable to summary judgment motions. The Court's ruling does not consider that objection.

Analysis

The parties do not dispute that "Plaintiff's wrongful death claim is founded on the 'wrongful acts' to which Decedent was subjected while in the Defendants' care and custody which are the basis of Plaintiff's Elder Abuse Act claim." (Opp. p. 15, ll. 16-18.) The FAC supports that the "wrongful acts" alleged in the Elder Abuse Act cause of action are the basis for the wrongful death claim. (FAC ¶¶ 68-71, 79-98, 219-247, 248-262 [willful misconduct], 263 [incorporating prior allegations].)

A. Legal Background and Elements of Wrongful Death Claim

The elements of a cause of action for wrongful death "include (1) a 'wrongful act or neglect' on the part of one or more persons that (2) 'cause[s]' (3) the 'death of [another] person' [citation omitted] – on legal theories of negligence and strict liability." (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 390.) (*See also Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1263; Code Civ. Proc. § 377.60.) The "wrongful act" on which Plaintiff relies to support this cause of action is not negligence, but willful misconduct or recklessness based on the factual allegations of the second cause of action for elder abuse. (FAC ¶¶ 68-71, 79-98, 219-247, 248-262 [willful misconduct], 263 [incorporating prior allegations].)

The Elder Abuse Act generally addresses protection of the elderly, defined as persons 65 or older, and dependent adults from egregious acts and omissions committed by those in a caregiver or custodial

care relationship with the elderly. Neglect for purposes of the Elder Abuse Act is defined in Welfare & Institutions Code section 15610.57 and includes "[f]ailure to protect from health and safety hazards." (Welf. & Inst. Code § 15610.57(b)(3).) A claim for neglect under Elder Abuse Act is not based on professional negligence. (*Country Villa Claremont Healthcare Center, Inc. v. Superior Court* (2004) 120 Cal.App.4th 426, 432.) "[N]eglect' within the meaning of Welfare and Institutions Code section 15610.57 covers an area of misconduct distinct from 'professional negligence.'" (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 783.) "As used in the [Elder Adult and Dependent Adult Civil Protection] Act, neglect refers not to the substandard performance of medical services but, rather, to the 'failure of those responsible for attending to the basic needs and comforts of elderly or dependent adults, regardless of their professional standing, to carry out their custodial obligations.'" (*Id.*) (See also *Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, 152, 157-160, 165 [neglect under the Elder Abuse Act does not apply to the negligent provision of medical services].)

Under *Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, Plaintiff must plead and prove "facts establishing that the defendant: (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care [citations]; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs [citations]; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult's basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness) [citations]." (*Id.* at 406-407 [emphasis added].) "To recover the enhanced remedies available under the Elder Abuse Act from a health care provider, a plaintiff must prove more than simple or even gross negligence in the provider's care or custody of the elder. [Citations omitted.]" (*Id.* at 405.) Under Welfare & Institutions Code section 15657, to obtain the enhanced remedies provided in that statute, Plaintiff must prove by clear and convincing evidence both that there was "neglect" as defined in the statute and "that the defendant has been guilty of recklessness, oppression, fraud, or malice in the commission of this abuse." (Welf. & Inst. Code § 15657.) (See also *Covenant Care, Inc. v. Superior Court, supra*, 32 Cal.4th at 783.) "Recklessness involves ' "deliberate disregard" of the "high degree of probability" that an injury will occur' and 'rises to the level of a "conscious choice of a course of action . . . with knowledge of the serious danger to others involved in it." ' [Citation omitted.]" (*Id.* at 405.)

There is no dispute that GHC had custodial care of Ms. Marshall, and that she was bedridden and incapable of providing for her own basic life needs. The dispute centers on whether GHC and Life Generations "denied or withheld goods or services necessary to meet the elder or dependent adult's basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness) [citations]." (*Id.* at 406-407.) GHC and Life Generations dispute whether any acts or omissions by them caused Ms. Marshall's death.

Plaintiff contends that GHC and Life Generations committed neglect by denying or withholding care necessary to meet Plaintiff's basic needs in light of her high risk of pressure injuries and skin injuries from her incontinence and that GHC and Life Generations did so "recklessly," consisting of a " 'deliberate disregard' of the 'high probability' that an injury will occur, or a 'conscious choice of a

course of action with knowledge of the serious danger to others involved in it.' (*Delaney v. Baker* (1999) 20 Cal.4th 23, 31-32.)" (Opp. p. 22, ll. 17-20.) She contends that the neglect at GHC and Life Generations was a substantial factor causing her death more than eight months after she left their care.

B. Undisputed Material Facts

A number of the facts are undisputed. Ms. Marshall was 85 years old when she was first admitted to Walnut Creek Nursing & Rehabilitation Center (aka GHC of Walnut Creek), a licensed skilled nursing facility, on January 27, 2021. (UMF 8, 11.) The duration of Ms. Marshall's time at GHC is undisputed, specifically she was a resident at GHC Walnut Creek from January 27, 2021 to February 9, 2021 (14 days), and from February 13, 2021 to March 20, 2021 (35 days), based on multiple UMFs addressed below.

When she was admitted on January 27, 2021, Ms. Marshall was noted to be at high risk for pressure ulcers and had a medical history that included a stroke suffered four and a half months prior to her admission, chronic respiratory and heart failure, hypertension, atrial fibrillation, neuropathy, edema, asthma and several other conditions, including peripheral vascular disease. (UMF 11, 12.) She was "bedbound with limited functionality status/post tracheostomy and PEG," and lacking capacity to make decisions. (UMF 11.)

On her admission to GHC, Ms. Marshall had an unstageable pressure ulcer injury on her right outer ankle, a wound on her right outer ankle, and a black callus on her left fifth toe. (UMF 17.) On the date of her admission, there were orders placed to "float" Ms. Marshall's heels, to turn and reposition Ms. Marshall, and to monitor for incontinence every two hours, in addition to other skin monitoring for pressure injury risks. (UMF 14.) There was also a plan for wound care for Ms. Marshall's right ankle pressure injury and left fifth toe. (UMFs 15, 16, 18.) She received a number of evaluations on January 28, 2021, including evaluations by physical therapy, occupational therapy, and nutrition services. (UMFs 20-22.) The next day she was evaluated by speech therapy. (UMF 25.)

On February 3, 2021, there was a plan to treat Ms. Marshall's ankle wound which included, among other things, cleansing the wound with theraworx, covering the wound with foam, and continuing to monitor the wound for healing, a plan to treat her moisture-associated skin damage (MASD) to her bilateral buttocks by application of calazime and A&D ointment, and a plan to treat her left fifth toe callus with skin prep and leaving the toe open to the air. (UMFs 33-35.) On February 9, 2021, Ms. Marshall had elevated sodium levels, and a doctor ordered that she be taken to the John Muir Hospital emergency department. (UMF 42.)

It is undisputed that during her stay at GHC Walnut Creek between January 27, 2021 and February 9, 2021, she had weekly skin checks, pressure ulcer BWAT reports, and skin alteration reports, and a weekly Braden Scale pressure ulcer risk assessment. (UMFs 43, 44.) She was also seen by a doctor on seven dates during that 14 day time period. (UMF 45.)

On February 13, 2021, Ms. Marshall was readmitted to GHC Walnut Creek. (UMF 46.) GHC had a care plan for Ms. Marshall's right ankle wound care, bilateral buttock MASD, and left fifth toe callus similar to the prior plans. (UMFs 49-51.) As of February 13, 2021 when she was readmitted, her right ankle, lower fibula was measured at 2.0x0.5x0.4, her buttock MASD with an open area of 4.0x1.0 (on both sides, or the left side measured at 4.0x1.5 cm), and the left fifth toe at 1.5x1.5 cm. (UMF 48 and Pl.

Resp. to UMF 48.) On February 17, 2021, there was no change in Ms. Marshall's wounds and wound care plan from the prior week. (UMF 57.) Ms. Marshall's wounds remained stable in size based on the nursing documentation on February 13, February 17, and February 24, 2021. (Pl. Resp. to UMF 65.)

On March 3, 2021, a new deep tissue, unstageable injury to Ms. Marshall's left heel was noted that was covered in black eschar and measured 9.0x6.0 cm, and the care plan was to continue to keep her heels floated at all times and apply betadine to the wound twice a day. (UMF 74.) On March 4, 2021, an arterial ultrasound of her left leg was ordered. (UMF 76.) On March 9, 2021, moving parties contend that Ms. Marshall's left heel wound was "noted to be vascular, not pressure-related after a venous ultrasound showed peripheral artery disease," the cause of which Plaintiff disputes. (UMF 85; Pl. Resp. to UMF 85.) On March 10, 2021, Ms. Marshall's right ankle wound was 6.0x4.0 cm and covered in black eschar. She was seen by a wound specialist on March 13, 2021, and she had a vascular surgery consult on March 15, 2021. (UMFs 92, 95.) On March 17, 2021, Ms. Marshall's right ankle wound was measured at 15.5x9.0 (or 15.5x9.5) cm and 90% covered in black eschar. (UMF 98; Pl. Resp. to UMF 98.) On March 17, 2021, her left heel peripheral arterial vascular ulcer measured 8.5x5.0 cm and was 100% covered in black eschar, and she was seen by a wound specialist and vascular specialist. (UMF 99.) On the same date, her buttocks MASD had redness but no signs of infection and an open area of 1.0x5.0x0.1. (UMF 100.)

On March 20, 2021, Ms. Marshall had a fever of 103.4, and her doctor ordered her to be transferred to the emergency department and was sent to John Muir Medical Center Walnut Creek. (UMFs 105, 106.) Ms. Marshall undisputedly had Braden Scale pressure sore assessments on February 13, 2021, March 5, 2021, and March 12, 2021, but Plaintiff disputes that she had such assessments on February 14, 2021, February 19, 2021, and February 26, 2021 based on the records cited and provided in support of the motion. (UMF 107; Pl. Resp. to UMF 107.) It is undisputed she had weekly skin checks, pressure Ulcer BWAT reports, and skin alteration reports on six dates between February 13, 2021 and March 17, 2021. (UMF 108.)

C. UMFs Disputed by Plaintiff

Plaintiff disputes a number of the UMFs in which GHC and Life Generations state that Ms. Marshall was turned and repositioned "according to the treatment plan" on particular dates. Plaintiff also disputes a number of the UMFs in which GHC and Life Generations state that wound care was provided to Ms. Marshall in accordance with the care plan on particular dates. The basis for Plaintiff's dispute in most instances is that the evidence offered by the moving parties in support of those statements, specific medical records from GHC for specific dates, do not show the facts stated, specifically that Ms. Marshall was turned and repositioned and/or given a particular type of wound care on the date in question or in accordance with the treatment plan. (See, e.g., UMFs 19 [recommended treatment for wounds, not that treatment was provided], 26, 29, 31, 38, 39, 40, 41, 52, 59, 67 [pp. 783 and 785 describe that wound care was provided on 2/23/2021 and 2/24/2021, not 2/26/2021 as stated in the UMF], 81; Pl. Resp. to UMFs 19, 26, 29, 31, 38, 39, 40, 41, 52, 59, 67, 81.)

Though Plaintiff contests whether the GHC medical records cited and submitted in support of the foregoing UMFs support the facts stated regarding turning and repositioning in particular on certain dates, Plaintiff has conceded through her expert declaration the fact that the GHC medical records show consistent turning and repositioning of Ms. Marshall regularly every two hours from January 27,

2021 through February 9, 2021, and again from February 13, 2021 through March 5, 2021, and on March 8, 9, 11, 12, 13, 14, 16, 17, and during the six-hour period on March 20, 2021 before she was taken to the hospital. (Bain Decl. Exh. B.) Plaintiff has genuinely disputed five UMFs raising triable issues as to whether GHC failed to turn and reposition Ms. Marshall every two hours pursuant to her care plan on March 6, 7, 10, 15, and 19. (UMFs 79, 80, 86, 94, and 103; Pl. Resp. to UMFs 79, 80, 86, 94, and 103 and Bain Decl. ¶ 27.) While Plaintiff through Dr. Bain attempts to dispute the veracity of the entries in the records, Dr. Bain's declaration testimony admits that the records show what these UMFs state; namely, that Ms. Marshall was regularly turned and repositioned every two hours pursuant to the care plan on the above-cited dates.

In addition to stating turning and repositioning occurred pursuant to the care plan, UMFs 19, 26, 29, 31, 38, 39, 40, 41, 52, 59, 67, and 81 specifically state wound care "was completed according to the treatment plan" on certain specific dates, with citations to specific pages of the GHC medical records as support. The cited pages of the medical records do not refer to "wound care" such that these UMFs are not supported by the evidence, as pointed out by Plaintiff. (See Pl. Resp. to UMFs 19, 26, 29, 31, 38, 39, 40, 41, 52, 59, 67, 81.) If the evidence submitted by the moving parties does not support the fact stated in those UMFs, then moving parties have not met their initial burden as to those facts, such that moving parties have not shown that wound care was provided pursuant to the treatment plan on January 27, January 30, February 2, February 3, February 6, February 7, February 8, February 9, February 14, February 19, February 26, and March 8, 2021. (UMFs 19, 26, 29, 31, 38, 39, 40, 41, 52, 59, 67, and 81; Pl. Resp. to UMFs 19, 26, 29, 31, 38, 39, 40, 41, 52, 59, 67, 81.) Though Plaintiff disputes a number of other UMFs on the ground that the particular page cited by moving parties as the evidentiary support for the statement regarding wound care does not refer to wound care or does not apply to the date stated in the UMF, the forgoing list of genuinely disputed UMFs excludes UMFs if the Court found wound care, skin care, or wound or skin treatment on an immediately preceding page in the records submitted in Exhibit G to the Weller Declaration.

Plaintiff has also genuinely disputed UMF 107. The records cited in some instances are not provided in Exhibit G. Based on the Court's review of Exhibit G, there were no Braden weekly assessments in the records showing assessments were made on February 14 or February 26 as stated in the UMF. (See UMF 107; Pl. Resp. to UMF 107.)

The existence of disputed UMFs does not compel denial of a motion for summary judgment, though they can support denial of the motion. (*Compare Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 ["[I]f a triable issue is raised as to any of the facts in your separate statement, the motion must be denied! [Citations, internal quotation marks omitted.]"] and *Insalaco v. Hope Lutheran Church of West Contra Costa County* (2020) 49 Cal.App.5th 506, 521 [holding that a party moving for summary judgment who relies on facts that it designated undisputed to argue in its favor on summary judgment cannot then deem those same facts immaterial when they are disputed by the opposing party] to *Pereda v. Atos Jiu Jitsu LLC* (2022) 85 Cal. App. 5th 759, 773 [finding motion for summary judgment motion properly granted even though plaintiff disputed 54 out of 63 material facts listed in defendants' separate statement.].)

UMFs 110-124 address whether any acts or omissions of GHC as a skilled nursing facility, including its nursing staff, breached the applicable standard of care, whether any of its acts or omissions are sufficient to constitute recklessness or malice, whether any acts or omissions of GHC were a

substantial factor in the cause of Ms. Marshall's death, and whether any acts or omissions of an employee on which enhanced remedies could be awarded were authorized or ratified by the employer GHC or Life Generations. The Court will address those UMFs and the extent to which they raise triable issues of material fact below in the context of applying the law on elder neglect to the related facts and evidence.

D. Application of the Law to the Case and Existence of Triable Issues

1. Significant Pattern of Withholding of Care Shown by Clear and Convincing Evidence

To rise to the level of elder abuse or neglect under the Elder Abuse Act, more than mere negligence or an inadvertent failure to provide care is needed. The standard for recklessness under *Delaney* and *Covenant Care* is set forth above; the acts or omissions must rise to a level of conscious choice of a course of conduct with knowledge of serious danger posed to the patient. (*Delaney, supra*, 20 Cal. 4th at 31-32; *Covenant Care, supra*, 32 Cal.4th at 783.) The Court is also cognizant of the standard of proof of clear and convincing evidence, a standard Plaintiff does not contest in the opposition applies to elder abuse. (*Delaney, supra*, 20 Cal.4th at 31 ["In order to obtain the remedies available in section 15657, a plaintiff must demonstrate by clear and convincing evidence that defendant is guilty of something more than negligence; he or she must show reckless, oppressive, fraudulent, or malicious conduct." (Emphasis added.)]; *Basich v. Allstate Ins. Co.* (2001) 87 Cal.App.4th 1112, 1117-1118 [affirming grant of summary adjudication of claim for punitive damages, stating "If, in fact, the trial court viewed the evidence submitted by Basich in opposition to the motion for summary adjudication with the clear and convincing evidence standard in mind, it did so properly. [Citation omitted.]"].)

Plaintiff cites and relies on *Sababin v. Superior Court* (2006) 144 Cal.App.4th 81. The Court of Appeal in *Sababin* reversed a trial court order granting summary adjudication of an Elder Abuse Act claim. The trial court concluded that the facts showed nothing more than negligence, but the Court of Appeal disagreed, finding that the care center's failure to follow the established care plan for monitoring and addressing potential pressure ulcers raised triable issues of fact regarding whether the plaintiff could establish neglect under the Elder Abuse Act. (*Id.* at 83-87, 90 [in which appellant's challenged whether "there are triable issues of act as to whether Covina's employees acted with recklessness, oppression or malice when they failed to follow the care plan Covina established for maintaining the health of Renteria's skin"].) The Court in *Sababin* rejected the defendant's argument that if some care had been provided, the Court could not find abuse or neglect. "If some care is provided, that will not necessarily absolve a care facility of dependent abuse liability. For example, if a care facility knows it must provide a certain type of care on a daily basis but provides that care sporadically or is supposed to provide multiple types of care but only provides some of those types of care, withholding of care has occurred. In those cases, the trier of fact must determine whether there is a significant pattern of withholding portions or types of care. A significant pattern is one that involves repeated withholding of care and leads to the conclusion that the pattern was the result of choice or deliberate indifference." (*Id.* at 90 [emphasis added].)

The facts and evidence in *Sababin* was disputed. The Court summarized the facts relevant to its conclusion there were triable issues: "According to the Department's April 28, 2003 survey, Renteria's December 19, 2002 care plan 'indicated that staff would monitor skin daily for redness or breakdown

and report to the physician for a treatment order.' It was noted that on admission to East Valley, Renteria 'had lacerations on her toes and feet with poor skin condition on both buttocks' and that a nurse stated that 'the buttocks area was dark and red and felt squishy.' Also, her heel was bruised and had areas of redness. Despite the foregoing, Covina did not have any documentation of Renteria's skin condition. When Covina's treatment nurse was interviewed, she stated that she had not done a skin condition report for Renteria and was not aware of Renteria's reddened buttocks. A review of Covina's records indicated that there was no evidence of Renteria's right foot condition or reddened buttocks. Renteria's medical chart revealed that no one at Covina notified a physician of the need for a treatment order." (*Id.* at 89-90.) With acknowledgment of the "significant pattern" required to support the elder neglect claim, the Court, relying on the rule of liberal construction of the evidence in opposition to a motion for summary judgment, held, "{W}hen the evidence and inferences are liberally construed, we easily conclude that there is a triable issue as to whether Covina's employees acted with recklessness, oppression or malice. A trier of fact could find that when a care facility's employees ignore a care plan and fail to check the skin condition of a resident with Huntington's Chorea, such conduct shows deliberate disregard of the high degree of probability that she will suffer injury. Though Covina offers conflicting declarations regarding the care provided, we are not permitted to weigh the evidence." (*Sababin, supra*, 144 Cal.App.4th at 90 [emphasis added].)

When Ms. Marshall was first admitted to GHC Walnut Creek on January 27, 2021, she had existing injuries that were documented: an unstageable pressure ulcer (1.0x0.5 cm) on her right outer ankle, a wound (2.0x1.5x0.4) on her right outer ankle, and a black callus on her left fifth toe, and MASD was noted on her right buttock. (UMF 17; Bain Decl. ¶ 10.) On February 3, 2021, the MASD was noted as healing. (Bain Decl. ¶ 14.) When she was readmitted to GHC Walnut Creek on February 13, 2021 after being sent to the hospital on February 9, 2021, she had what Bain characterizes as "chronic trauma" in her sacrum/buttocks area from MASD measured at 4.0x1.5 cm on the left and 4.0x1.0 cm, an unstageable right ankle pressure ulcer measured at 2.0x0.5x0.4 cm, and the fifth left toe callous measuring 1.5x1.5 cm. (Bain Decl. ¶ 20.) Though the ankle and toe injuries existed when she was admitted, the MASD clearly expanded and was exacerbated by February 9, 2021 during GHC's care.

By March 20, 2021 when she was discharged from GHC Walnut Creek to the hospital for the second and last time, she had developed a left heel deep tissue injury measuring 9.0x6.0 cm on March 3 that had increased in size to 8.5x5.0 cm on the discharge date, and the unstageable right ankle pressure injury had increased to 15.5x9.0 cm with black eschar covering 90% of the wound. (Bain Decl. ¶¶ 24-26.) When she was discharged from GHC Walnut Creek and admitted to the hospital on March 20, 2026, she was in critical condition and diagnosed with severe sepsis suspected to be from her lower extremity ulcers, which included the left heel ulcer and infected right leg, and had a sacrococcygeal wound that extended to her right buttock. (Bain Decl. ¶ 32.) Between March 6, 2026 and March 20, 2026 (15 days), the period in which the pressure ulcer wounds worsened, there were five days on which GHC's records show the required two-hour turns and repositioning were not documented as having been made, including for time periods that extended for several hours or even an entire shift. (Bain Decl. ¶ 27 and Exh. B.) Dr. Bain calculates that GHC made 82.56% of the turns in that period but **missed 17.44%** of the two-hour turns provided for in the care plan. (Bain Decl. ¶ 27.) As set forth above, the UMFs are unsupported or genuinely disputed as to whether Ms. Marshall received wound care in accordance with the treatment plan on 12 dates cited above (see discussion of disputed UMFs 19, 26, 29, 31, 38, 39, 40, 41, 52, 59, 67, 81 above) of the 49 total days in which she was admitted to

GHC Walnut Creek, **roughly 24%** of the days she was admitted.

The Court concludes that Plaintiff has raised triable issues of fact as to whether GHC failed to follow its turning and repositioning and wound care plans for Ms. Marshall (see discussion of disputed UMFs 19, 26, 29, 31, 38, 39, 40, 41, 52, 59, 67, 79, 80, 81 86, 94, 103, and 107 above). Plaintiff has raised triable issues as to whether a trier of fact could find by clear and convincing evidence, based on the UMFs unsupported by the evidence, the disputed facts, and the admissible expert evidence from Dr. Bain, that Plaintiff has shown those failures constitute recklessness in the breach of the applicable standard of care for a skilled nursing facility and its nursing staff (See *also* Rulings on Evidentiary Objections to Bain Declaration below.) The facts show that GHC was clearly aware of the significance of the turning and repositioning of the patient and her wound care as GHC developed specific care and treatment plans to address those conditions. Questions of fact exist as to whether, despite that knowledge and the existence of the care plan, GHC failed to abide by those components of the care plan on multiple occasions as indicated above. The Court finds UMFs 113 [MASD on buttocks], 115, 116, 117 [genuinely disputed that MASD on buttocks and skin tear on right thigh originated at GHC], 119 [wound care and continued MASD resulted from failure to meet standard of care], 120 [documentation of turning and repositioning shows 5 days/17.44% of turns missed], 122, and 124 are genuinely disputed; they raise triable issues regarding whether Ms. Marshall suffered neglect rising to the level of recklessness based on GHC's failure to follow her care plan (or lack of evidence by the moving parties demonstrated they followed the care plan) regarding turning and repositioning and wound care.

The Court also notes that the issues on a motion for summary judgment are bounded by the pleadings. The issues to be considered on a motion for summary judgment or summary adjudication are defined by the pleadings. (*Anderson v. Fitness Internat., Inc.* (2016) 4 Cal.App.5th 867, 876; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161 ["The complaint measures the materiality of the facts tendered in a defendant's challenge to the plaintiff's cause of action."].) Plaintiff has alleged understaffing and lack of supervision by the care facilities in which Ms. Marshall was admitted, including failure to meet the minimum staffing levels required under the Health & Safety Code. (FAC ¶¶ 219-230.) The moving papers do not address the adequacy or inadequacy of the staffing levels at GHC. An inference could be drawn from the 17.44% of missed turns in the two-week period in March 2021 and the lack of evidence documenting wound care on 24% of the days of Ms. Marshall's admission that GHC may have been understaffed which may further support a finding of recklessness, a fact alleged and not negated in the motion.

2. Causation

Plaintiff cites *Espinosa v. Little Co. of Mary Hospital* (1995) 31 Cal.App.4th 1304 on the issue of causation, a case which addressed causation in the context of a medical malpractice claim. "In a medical malpractice action the element of causation is satisfied when a plaintiff produces sufficient evidence 'to allow the jury to infer that in the absence of the defendant's negligence, there was a reasonable medical probability the plaintiff would have obtained a better result. [Citations.]' [Citation omitted.]" (*Espinosa v. Little Co. of Mary Hospital* (1995) 31 Cal.App.4th 1304, 1314-1315 [quoting *Alef v. Alta Bates Hospital* (1992) 5 Cal.App.4th 208, 216].) The defendant's negligence must be a "cause-in-fact" of the injury, and "liability attaches if negligence is a substantial factor in causing the injury." (*Jennings v. Palomar Pomerado Health Systems, Inc.* (2003) 114 Cal.App.4th 1108, 1118 and

fn. 3.)

The Court in *Espinosa v. Little Co. of Mary Hospital*, *supra*, addressed the effect of multiple factors potentially causing the harm in that case. "Given this testimony, that defendants' conduct was a substantial factor in bringing about the outcome, Dr. Gabriel's inability to pin down the exact extent to which defendants' conduct contributed to the outcome is immaterial for purposes of causation. Clearly, where a defendant's negligence is a concurring cause of an injury, the law regards it as a legal cause of the injury, regardless of the extent to which it contributes to the injury. [Citation omitted.]" (*Espinosa v. Little Co. of Mary Hospital*, *supra*, 31 Cal.App.4th at 1317-1318.) The Court in that case noted that the expert did not testify that the negligent conduct was a "possible" cause but that the conduct was a substantial factor causing the brain damage at issue in that case. (*Id.* at 1318.)

UMFs 110, 112 [causation of heel injury developed at GHC], and 114 address causation. The Court concludes Dr. Bain's declaration adequately disputes that acts and omissions of GHC which resulted in the MASD and pressure injuries to develop or progress may have been a "substantial factor" in causing Plaintiff's death. Dr. Bain offers reasoned explanations for his opinions supported by the systemic review and meta-analysis described in his declaration relating pressure ulcers to increased rates of mortality. The Court cannot weigh the conflicting evidence. The evidence could support a finding that the neglect was a "substantial factor" contributing to her death.

3. Employer Ratification Issue

Welfare and Institutions Code section 15657(c) provides: "The standards set forth in subdivision (b) of Section 3294 of the Civil Code regarding the imposition of punitive damages on an employer based upon the acts of an employee shall be satisfied before any damages or attorney's fees permitted under this section may be imposed against an employer." Civil Code section 3294(b) states: "An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Emphasis added.)

Civil Code section 3294(b) was enacted decades before statutes authorizing the creation of limited liability companies were enacted. (See Fomer Beverly-Killea Limited Liability Company Act (Beverly-Killea Act; Corp. Code former § 17000 *et seq.* enacted in 1994, now replaced with California Revised Uniform Limited Liability Company Act, Corp. Code § 17701.01 *et seq.* enacted in 2014; *Western Surety Co. v. La Cumbre Office Partners, LLC* (2017) 8 Cal. App. 5th 125, 131.) Courts have explained that " '[a] limited liability company is a hybrid business entity formed under the Corporations Code and consisting of at least two 'members' [citation] who own membership interests [citation]. The company has a legal existence separate from its members. Its form provides members with limited liability to the same extent enjoyed by corporate shareholders [citation] . . . ' [Citations, internal quotation marks omitted.]" (*Western Surety Co.*, *supra*, 8 Cal. App. 5th at 131 [quoting *PacLink Communications Internat., Inc. v. Superior Court* (2001) 90 Cal.App.4th 958, 963].) There is at least one recent decision in which the Court appears to have assumed, though without deciding, that the

provisions of Civil Code section 3294(b) apply to a limited liability company. (*Samantha B. v. Aurora Vista Del Mar, LLC* (2022) 77 Cal. App. 5th 85, 105-106.)

Moving parties include a single UMF (UMF 123) which repeats a statement in the Dennin Declaration that it is her opinion "that there is no evidence that any officer, director, or managing agent of [GHC or Life Generations] had knowledge of, directed, or ratified any conduct that could constitute elder abuse or willful or reckless misconduct." (Dennin Decl. ¶ 11.) Ms. Dennin attests that she reviewed both the GHC chart pertaining to Ms. Marshall and GHC's "Nursing Service Policies and Procedures Manual – 2018, 2021, 2022, including Operational Policy and Procedures Manuals for 2021" in formulating her opinions, including the opinion stated in paragraph 11 of her declaration. (Dennin Decl. ¶ 5.)

The only reasonable inference from UMF 123 is that Ms. Dennin's review of the GHC records and applicable procedure manuals does not indicate any person of managerial-level authority for the employer authorized or ratified any failures of care by the nurses and other providing Ms. Marshall's care. Plaintiff submits no evidence to contest that facts stated in this UMF, and the reasonable inference from the fact stated is that the "employer" did not ratify or authorize any employee's conduct on which the award of enhanced remedies under the Elder Abuse Act could be based.

The Court rejects Plaintiff's argument that moving parties failed to adequately raise this deficiency in Plaintiff's ability to prove its claims against them. Plaintiff concedes that moving parties raised the lack of evidence of employer ratification or authorization of the employees' conduct in their initial memorandum sufficiently such that Plaintiff responded to the argument in her opposition. (Opp. p. 26, ll. 1-25.) Moving parties included UMF 123.

Nevertheless, the Court concludes that moving parties failed to meet their initial burden on this issue in the moving papers by failing to address the allegations in the FAC of a pattern of understaffing and noncompliance with the staffing requirements of Health & Safety Code section 1295, which Plaintiff alleged resulted in omissions in the compliance with her care and treatment plans. (See, e.g., FAC ¶ 220 ["Defendants routinely failed to staff sufficiently so that needed treatment was *not* performed or adequately/timely performed." (Italics in original.)]) (See *also* generally FAC ¶¶ 219-247 [corporate-level decisions on budgets and inadequate staffing levels].) While UMF 123 and Ms. Dennin's declaration may state that she did not observe evidence of knowledge, direction, or ratification of "any conduct" that could constitute elder neglect or recklessness by a member of the nursing staff, strictly construed, that evidence does not address the employer management's knowledge, direction, or ratification of limitations in staffing levels or staffing levels not in compliance with the Health & Safety Code which may have resulted in the omissions in care. For these reasons, the Court finds summary judgment cannot be granted for moving parties based on lack of employer authorization or ratification of the neglect.

Moving Parties' Evidentiary Objections to Bain Declaration

Obj. Nos. 1 and 2 - **Overruled.** The declarant sets forth a factual basis for his opinion that charting showing perfectly timed two-hour turning and repositioning is "clinically implausible" based on the remainder of paragraph 28 in which Dr. Bain explains that a patient such as Ms. Marshall typically is subject to multiple therapies, treatments and interventions that "necessarily create variability in timing and work flow," making the "complete absence of any variation" a concern regarding accuracy

and reliability of the charting regarding the turning and repositioning. The Court agrees that whether the evidence is reliable or accurate will be for a trier of fact to determine.

Obj. No. 3 – **Sustained.**

Obj. Nos. 4, 5 - **Overruled.** As set forth above, the evidence in the moving papers and GHC's medical records reviewed by Dr. Bain show missed turning/repositioning which supports the opinion that the development and progression" of Ms. Marshall's injuries are consistent with inadequate pressure relief and turning. The Court cannot weigh the credibility of the opinion but can only assess whether there is a reasoned explanation for the opinion. (*Fernandez v. Alexander* (2019) 31 Cal.App.5th 770, 781-782; *Sanchez v. Kern Emergency Medical Transportation Corp.* (2017) 8 Cal.App.5th 146, 155-156 [among other things, to be admitted, the medical expert opinion cannot be conclusory, must contain a "reasoned explanation" for the opinions expressed, and with respect to a causation opinion, must be sufficient to convince a trier of fact "that it is more probable than not the negligent act was a cause-in-fact of the plaintiff's injury." (*Sanchez v. Kern Emergency Medical Transportation Corp.*, *supra*, 8 Cal.App.5th at 160; *Fernandez v. Alexander*, *supra*, 31 Cal.App.5th at 781-782 (expert declaration was conclusory, not supported by a reasoned explanation, and his conclusion on causation, though stated to a "reasonable degree of medical probability," failed to connect the factual predicates to the conclusion, making the declaration inadmissible on summary judgment].) Here, Dr. Bain's declaration connects the facts regarding how pressure ulcers and injuries occur with the patient's condition and symptoms and provides a reasoned explanation for why her injuries occurred or progressed. As to the statement regarding "failure of preventive care" (Bain Decl. ¶ 36, Obj. No. 5), the Court interprets the statement based on the language used. It does not refer to breach of the standard of care but rather factually, that "preventive care" failed which resulted in the development of the heel pressure injury.

Obj. No. 6 – **Overruled.** Dr. Bain explains what MASD is, how it arises, and how it is prevented, which provides the foundation for the opinion. (See Bain Decl. ¶¶ 19, 20, 43, 44.)

Obj. No. 7 – **Overruled.** Foundation is laid in the declaration for the pressure injuries that developed and/or progressed during Ms. Marshall's periods of admissions to GHC Walnut Creek and regarding the medical literature regarding the increased risk of mortality when a patient has pressure injuries. (Bain Decl. ¶ 46.) Dr. Bain attests that he was aware of Ms. Marshall's other health conditions and comorbidities, which the medical literature cited addresses, and that he reviewed Ms. Marshall's medical records from the other facilities where she was placed in formulating his opinion. (Bain Decl. ¶¶ 8-11, 46.) The Court interprets the term "neglect" as used in the sentence objected to as referring to the common understanding of the term "neglect," based on the failures of care noted by the declarant from the GHC records discussed in the declaration, and at most, an admissible ultimate fact but not a legal conclusion. (*Towns v. Davidson* (2007) 147 Cal. App. 4th 461, 472 ["Although the expert's testimony may embrace an ultimate factual issue (Evid. Code, § 805), it may not contain legal conclusions. [Citation omitted.]" (Emphasis added.).) As such, it cites an "evidentiary fact" to which Dr. Bain as a qualified expert may attest. (*Hayman v. Block* (1986) 176 Cal. App. 3d 629, 639.) (See *also* Evid. Code § 805 ["Testimony in the form of an opinion that is otherwise admissible is not objectionable because it embraces the ultimate issue to be decided by the trier of fact."].)

Obj. No. 8 – **Sustained in part** as to "this constituted custodial neglect" as an ultimate conclusion of law. (*Towns, supra*, 147 Cal. App. 4th at 472.)

21. 9:00 AM CASE NUMBER: N24-2030
CASE NAME: MHF HOLDING VIER GMBH & CO. KG VS. KAILA MWALE
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: MWALE, KAILA
TENTATIVE RULING:

Larissa A. Branes and LS Carlson Law, PC (“Counsel”) filed two separate motions to be relieved as counsel on November 25, 2025 (the “Motions to be Relieved as Counsel”). The Motions to be Relieved as Counsel were set for hearing on April 13, 2026.

Background

Counsel seeks to be relieved as attorneys for defendants Kaila Mwale and Julius Mwale (“Defendant”).

The supporting declarations filed by Counsel indicates that there has been a breakdown in the attorney-client relationship due to “irreconcilable differences.” See Declarations filed November 25, 2025, ¶2. Defendants have been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

22. 9:00 AM CASE NUMBER: N24-2030
CASE NAME: MHF HOLDING VIER GMBH & CO. KG VS. KAILA MWALE
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: MWALE, JULIUS
TENTATIVE RULING:

See LINE 21 above.

23. 9:00 AM CASE NUMBER: N25-2006
CASE NAME: CRYSTAL MASSAGE HEALTH CENTER, INC. VS. CITY OF BRENTWOOD
HEARING ON DEMURRER TO: WRIT PETITION
FILED BY: CITY OF BRENTWOOD
TENTATIVE RULING:

Before the Court is City of Brentwood and Amanda McVey's (collectively "Respondents") demurrer to Crystal Massage Health Center, Inc., and Andy Huang's (collectively "Petitioners") Petition for a Writ of Mandate under California Code of Civil Procedure sections 1094.5 and 1085, and Complaint for Declaratory and Injunctive Relief.

Respondents demurrer, pursuant to Code of Civil Procedure sections 430.10(a) and 430.10(e), on the grounds that (1) the petition and each cause of action therein fails to state facts sufficient to constitute a cause of action because Petitioners failed to exhaust administrative remedies under Brentwood Municipal Code sections 5.70.070(B)(1) and 5.70.080 and (2) the writ petition is untimely under Code of Civil Procedure section 1094.6. (Demurrer filed to writ petition "Dem." at 2:10-15.) Respondents further contend that Ms. McVey is not a proper party to this action as she is entitled to statutory immunity under Government Code sections 820.2 and 821.6. (*Id.* at 2:15-17.)

Petitioners oppose the Demurrer; they request that the Court excuse the late filing of the Appeal under principles of equitable tolling and estoppel in order to prevent an unfair technical bar to Petitioner's requested relief.

For the following reasons, the demurrer to the first cause of action for a Writ of Mandate under Code of Civil Procedure section 1094.5, third cause of action for Declaratory Relief, and fourth cause of action for Injunctive Relief is **SUSTAINED WITH LEAVE TO AMEND**; the demurrer to the second cause of action for Traditional Mandamus under Code of Civil Procedure section 1085, and the demurrer as to Ms. McVey is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Request for Judicial Notice

Respondents request judicial notice of Brentwood Municipal Code sections 5.70.070 and 5.70.080. Municipal ordinances are subject to judicial notice under Evidence Code section 452(b). The unopposed request for judicial notice is **GRANTED**.

I. Background and Procedural History

This case arises out of the City of Brentwood's ("the City") revocation of Petitioners Andy Huang ("Mr. Huang") and Crystal Massage Health Center's (CMHC) massage therapy permit and the subsequent appeal process. (Initial Petition Filed "Pet." at 1:20-25, Exhibit 1.)

The revocation was communicated to Petitioners by way of a letter delivered to CMHC. The letter, signed by the chief of the Brentwood Police Department, Timothy Herbert, described "a number of administrative violations" as well as an investigation into whether "lewd acts were being offered without suggestion from clients." (Pet. at Exhibit 1.) It concluded that "[b]ased on our inspection and

investigation, our determination is that we are moving forward with revoking your massage therapy permit for the City of Brentwood.” (*Ibid.*)

The letter further noted that Mr. Huang could appeal the decision under Brentwood Municipal Code section 5.70.080 by “providing written notice of appeal along with a brief description of the reason for the appeal to the City Clerk...” but intent to appeal must be provided to the City Clerk “within ten calendar days after receipt of this notice.” (Pet. at Exhibit 1.) In the absence of a timely written request for appeal, “the right to appeal is deemed waived and the decision...will become final.” (*Id.*)

Though dated Thursday May 22, 2025, the document was never handed to Mr. Huang and was instead left on a desk at CMHC on Friday May 23, 2025. (Pet. at 5:1-2, Huang Declaration (“Huang Dec.”) ¶ 2, Exhibit 1.). In the days that immediately followed his discovery of the letter, Mr. Huang attempted to retain counsel by searching for attorneys online and via the Contra Costa County Bar Association database, and by contacting law firms to find out whether they had experience handling Brentwood Municipal Code appeals. (*Id.* at 5:8-11.) Monday May 26, 2025, was Memorial Day, and the City’s offices and most lawyer’s offices were closed. (*Id.* at 5:3-5.)

Petitioners, through counsel, filed an appeal denying claims of lewd conduct, documenting compliance efforts, and requesting reconsideration with the City Clerk on June 3, 2025, at 3:22 p.m., one day after the City’s ten-day deadline had passed. (Pet. at 5:23-28.) After initially listing the appeal as “under review,” the City ultimately declared it “untimely” on June 26, 2025, and closed the file. (*Id.* at 6:1-2.) The following day, Petitioners submitted a “formal Request for Reconsideration” to the City, “citing minimal delay, lack of notice on office hours or filing cutoffs, disproportionate punishment, and due process violations.” Petitioners allege that Respondents subsequently “failed to act.” (*Id.*, Exhibit 4 at 1.)

CMHC has since been closed “causing a complete loss of income and customer base, layoffs of staff, reputational harm and potential permanent closure absent judicial intervention.” (Pet. at 6:7-9.) Petitioners filed the instant petition October 2, 2025.

II. Meet-and-Confer Efforts

Respondents’ counsel emailed counsel for Petitioners on November 12, 2025, inviting counsel to meet and confer to discuss the deficiencies raised in this demurrer. (Hickey Declaration (“Hickey Dec.”) ¶ 3.) Counsel for both parties met telephonically to that end on November 14, 2025, but the parties were unable to come to an agreement on resolution. (*Id.* ¶ 4.) The Court is satisfied that Defendants met their statutory burden under Code of Civil Procedure section 430.41.

III. Legal Standard

“The right of the respondent in a *mandamus* proceeding to test the legal sufficiency of the petition for a writ by demurrer thereto has always been recognized by the courts of this state.” (*Matteson v. Board of Education* (1930) 104 Cal.App. 647, 650.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim.

(*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A demurrer does not test the truth or accuracy of the facts alleged in the complaint; the court assumes the truth of all properly pleaded factual allegations. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203.)

Leave to amend is liberally allowed as a matter of fairness, however when it conclusively appears that there is no possibility of alleging facts under which recovery can be obtained, denial of leave to amend is appropriate. (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747; *Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412.) “Leave to amend should be denied where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law.” (*Lawrence v. Bank of Am.* (1985) 163 Cal.App.3d 431, 436.)

IV. Analysis

a. First Cause of Action: Administrative Mandamus (Code of Civil Procedure § 1094.5)

i. The City’s Service Did Not Comply with BMC § 5.70.070(B)(1)

Brentwood Municipal Code section 5.70.070 establishes the exclusive procedure for revocation or suspension of massage establishment permits. (Respondents’ Request for Judicial Notice (“RJN”), Exhibit A; Brentwood Municipal Code §§ 5.70.070(B)(1).) The written notice “will be *served on the applicant personally or by deposit of the notice in the United States mail by certified mail* at the most recent home or business address on file with the police department.” (*Ibid.* (emphasis added).) These are the only two permissible methods of service under the ordinance.

The Petition alleges that although the “Notice of Immediate Suspension” was dated May 22, 2025, it was not handed to Mr. Huang personally, nor was it sent by certified mail, it was instead left on a desk at CMHC on Friday May 23, 2025. (Pet. at 5:1-2, Huang Dec. ¶ 2, Exhibit 1.) On demurrer, the Court accepts these allegations as true. (*Los Altos Golf & Country Club, supra*, 165 Cal.App.4th at 203.)

Leaving a document on a desk is neither personal service nor certified mail. The City’s method of delivery does not satisfy either of the service methods prescribed by the ordinance. Service of the notice was therefore defective under Brentwood Municipal Code section 5.70.070(B)(1).

i. Because Service Was Defective the June 3rd Appeal Was Timely

Brentwood Municipal Code section 5.70.070(C)(3) provides that following receipt of a notice of immediate suspension, the applicant may file an appeal “within ten calendar days thereafter.” (RJN, Exhibit A at 2.) Here, because the prescribed methods of service were not followed, however, the ten-day appeal period was never validly commenced.

Respondents contend that Petitioners failed to exhaust their administrative remedies by filing their appeal one day late. (Dem. at 8:16-23.) For this contention they rely on Brentwood Municipal Code section 5.70.080(E), which deems failure to appeal a failure to exhaust. (*Ibid.*) This argument presupposes that the ten-day period was validly triggered; it was not. A limitations period cannot begin to run before valid service has been effectuated. The City cannot benefit from a deadline it set in motion through defective service.

Respondents' reliance on *Traverso v. People ex rel. Dept. of Transportation* (1993) 6 Cal.4th 1152, is unavailing; that case addressed the constitutional sufficiency of notice but does not address a municipality's failure to comply with its own service ordinance.

Because compliant service under Brentwood Municipal Code section 5.70.070(B)(1) never occurred, the ten-day deadline to appeal the suspension was never properly triggered and Petitioners' June 3, 2025 appeal fell within the appeal period as a matter of law. Petitioners therefore timely exhausted their administrative remedies and the demurrer on the ground of failure to exhaust is overruled. That conclusion does not resolve the separate question of whether the instant writ petition was itself timely filed. Once the City denied the appeal on June 26, 2025, the limitations period for seeking judicial review ran separately under Code of Civil Procedure section 1094.6.

i. Writ Petition Was Untimely; Equitable Tolling is Not Established on Current Record

Code of Civil Procedure section 1094.6 provides that any petition for writ of mandate challenging a local agency decision "shall be filed no later than the 90th day following the day on which the decision becomes final." (Code Civ. Proc. § 1094.6(b).) Where no provision for reconsideration exists, the decision is final on the day it is announced. (*Ibid.*)

Here, the City transmitted its decision denying Petitioners' appeal on June 26, 2025. Petitioners do not identify, and Respondents' request for judicial notice does not show, any provision in the Brentwood Municipal Code authorizing reconsideration of that denial. (RJN, Exhibit A at 1-3; Brentwood Municipal Code §§ 5.70.070, 5.70.080.) The June 26, 2025 decision therefore constituted the City's final administrative decision for purposes of Code of Civil Procedure 1094.6.

Petitioners "Request for Reconsideration of Denial of Appeal" correspondence (Pet., Exhibit 4.) did not toll the limitations period. Where a municipal code provides no reconsideration mechanism, an informal request does not extend finality under Code of Civil Procedure section 1094.6. The decision remained final on June 26, 2025, regardless of whether Petitioners chose to send an additional letter.

Petitioners invoke *Saint Francis Memorial Hospital v. State Dept. of Public Health* (2020) 9 Cal.5th 710, in support of equitable tolling. *Saint Francis* addressed equitable tolling of the 30-day judicial review deadline under Government Code section 11523 and confirmed the general presumption that statutory deadlines are subject to equitable tolling. (*Saint Francis Memorial Hospital, supra*, 9 Cal.5th at 720.) The Court noted, however, that "equitable tolling is a narrow remedy that applies to toll statutes of limitations only 'occasionally and in special situations.'" (*Id.* at 724.) It requires a showing of three elements: (1) provision of timely notice to the respondents, (2) lack of prejudice to the respondent, and (3) reasonable and good faith conduct on the part of petitioner. (*Ibid.*) The Court did not hold that tolling is available in every case, only that it is not categorically foreclosed.

Respondents contend that equitable tolling is unavailable here because Petitioners did not pursue their claim in two separate forums simultaneously, characterizing the doctrine as limited to situations involving concurrent proceedings in different tribunals. (Respondents' Reply ("Reply") at 3:2-13.) This argument is foreclosed by *Saint Francis* itself. Our Supreme Court expressly rejected the proposition that equitable tolling is categorically limited to the two-forum scenario, explaining that the doctrine

has broader application and that no single factual pattern is required. (*Saint Francis Memorial Hospital, supra*, 9 Cal.5th at 725-726.) The relevant inquiry is whether the three-factor test is satisfied, not whether the case involves simultaneous proceedings in multiple forums. That said, even assuming *arguendo* that under *Saint Francis*, equitable tolling is available in the context of Code of Civil Procedure section 1094.6, Petitioners have not established that they are entitled to it on this record.

Respondents argue that Petitioners cannot meet the second element of *Saint Francis* because Respondents will be prejudiced if Petitioners are permitted to proceed with their writ in that the finality of municipal decisions will be called into question. The Court in *Saint Francis* addressed a similar argument from the respondent in that case and the Court noted that such an argument “ignores the core focus of our prejudice analysis: whether application of equitable tolling would prevent the defendant from defending a claim on the merits.” (*Saint Francis Memorial Hospital, supra*, 9 Cal.5th at 728.) The Court went on to observe that the implications of accepting such an argument would all but compel the court to find prejudice in almost every equitable tolling case. “Virtually all parties, after all, tend to rely on statutes of limitations in the course of litigation.” (*Ibid.*) Furthermore, as the Court in *Saint Francis* observed of the same argument, Respondents’ in their claim of prejudice overlook the fact that “the finality of adjudicative decisions is already undermined by the statute itself which expressly allows decisions to be appealed—appeals which can, and typically do, postpone the finality of the Department’s decisions for years.” (*Ibid.*)

Petitioners adequately allege the first two *Saint Francis* elements at the pleading stage. Their June 27, 2025 request for reconsideration expressly reserved the right to seek judicial review by writ, and Respondents therefore had notice of Petitioners’ intent to continue pursuing the matter. At this stage, Respondents likewise have not shown prejudice of the type relevant to equitable tolling, namely prejudice in defending on the merits.

Petitioners do not, however, allege facts sufficient to satisfy the third element: objectively reasonable and good faith conduct during the limitations period. After expressly reserving litigation rights on June 27, 2025, Petitioners – represented by counsel – took no action to file the writ petition until October 2, 2025, eight days after the 90-day deadline had passed. Petitioners explain the circumstances surrounding the tardiness by one day for the 10-day appeal deadline, yet allege no facts explaining why the writ petition could not have been filed within the 90-day window prescribed by Code of Civil Procedure section 1094.6. To meet *Saint Francis*’ third element “[a] plaintiff’s conduct must be objectively reasonable and subjectively in good faith.” (*Saint Francis Memorial Hospital, supra*, 9 Cal.5th at 729.) Conduct that is diligent enough to notify the City of intent to litigate but then inexplicably dormant for the remainder of the limitations period does not meet the standard of objectively reasonable good-faith conduct that equitable tolling is designed to protect. (*Ibid.*)

Because Petitioners have not established objectively reasonable and good-faith conduct throughout the limitations period, equitable tolling is not available on the current record. The writ petition was not filed within the 90 days prescribed by Code of Civil Procedure 1094.6 and the demurrer is therefore **SUSTAINED**. However, because the petition is silent rather than conclusively negative on the basis of the delay between June 27 and October 2, 2025, **LEAVE TO AMEND IS GRANTED** solely to

allow Petitioners to plead facts, if any exist, sufficient to establish the third *Saint Francis* element.

b. Second Cause of Action: Traditional Mandamus (Code of Civil Procedure §1085)

The second cause of action for Traditional Mandamus fails on two independent grounds.

First, Code of Civil Procedure section 1085 is not the proper vehicle to challenge the City's decision to suspend and revoke Petitioner's massage therapy permit. "The decision to grant or deny a permit is a quasi-judicial function, and a petition for writ of mandate challenging such a decision is governed by the standards of Code of Civil Procedure section 1094.5" (*California Assn. of Sanitation Agencies v. State Water Resources Control Bd.* (2012) 208 Cal.App.4th 1438, 1453; see also *Lanigan v. City of Los Angeles* (2011) 199 Cal.App.4th 1020, 1029.) "When a statutory regime vests exclusive jurisdiction in an agency...a party may only proceed administratively and thereafter may only challenge the results of any administrative outcome through administrative mandamus (Code Civ. Proc., § 1094.5) or such other means as the statutory scheme may specify." (*Villanueva v. Fidelity National Title Co.* (2021) 11 Cal.5th 104, 126, fn. 12.)

Here, because the permit suspension arose from a quasi-judicial process under the Brentwood Municipal Code, Code of Civil Procedure section 1094.5 is the exclusive writ vehicle.

Second, even if Code of Civil Procedure section 1085 were applicable, the relief Petitioners seek is not cognizable under that statute. Petitioners ask this Court to direct the City to accept their appeal and conduct a hearing on the merits. (Pet. at 16:7-8.) That is not the compulsion of a ministerial act, it is an attempt to direct the exercise of discretion in a particular direction, which Code of Civil Procedure section 1085 does not permit. (*People ex rel. Younger v. County of El Dorado* (1971) 5 Cal.3d 480, 490-491; *Daily Journal Corp. v. County of Los Angeles* (2009) 172 Cal.App.4th 1550, 1555.) A writ of mandate may not issue to control a public agency's exercise of discretion, and a court may not compel the exercise of discretion in a specific manner or to reach a specific result.

Accordingly, the demurrer to the second cause of action is **SUSTAINED WITHOUT LEAVE TO AMEND**.

c. Third and Fourth Causes of Action: Declaratory Relief and Injunctive Relief

The third and fourth causes of action for Declaratory Relief and Injunctive Relief, respectively, are entirely derivative of the writ claims. Neither cause of action has an independent basis for relief; both depend on the premise that Petitioners are entitled to a hearing on their administrative appeal. Because the writ petition fails for the reasons stated above, the derivative claims for declaratory and injunctive relief claims fail with it.

The demurrer to the third and fourth causes of action is **SUSTAINED WITH LEAVE TO AMEND** solely on the same basis and subject to the same limitations stated in section (IV)(a) *ante* for the first cause of action.

d. Respondent McVey

Ms. McVey is not a necessary or proper party. Petitioners seek relief against the City and its administrative process. Ms. McVey is sued only in her official capacity as City Clerk, and any writ or injunctive relief directed to her in that capacity would be functionally identical to the relief directed to

the City itself. Her inclusion therefore adds nothing not already encompassed by the City's presence as a respondent.

Independently, Ms. McVey is entitled to statutory immunity under Government Code sections 820.2 and 821.6. Section 820.2 provides that a public employee is not liable for injury resulting from a discretionary act or omission within the scope of employment. (Gov. Code § 820.2.) Section 821.6 provides that a public employee is not liable for injury caused by instituting or prosecuting any judicial or administrative proceeding within the scope of employment, even if the employee acts maliciously or without probable cause. (Gov. Code § 821.6.) The conduct attributed to Ms. McVey – receiving Petitioner's appeal, evaluating its timeliness under the Brentwood Municipal Code, and communicating the City's determination – constitutes both the exercise of discretion within the scope of employment and the prosecution of an administrative proceeding. Both immunity provisions apply.

The demurrer as to Ms. McVey is **SUSTAINED WITHOUT LEAVE TO AMEND** on both grounds. Amendment cannot cure either defect.

V. Conclusion

The City failed to comply with the service requirements of Brentwood Municipal Code section 5.70.070(B)(1), and, as a result, the ten-day appeal period was not properly triggered. The June 3, 2025 appeal was therefore timely and Petitioners exhausted their administrative remedies.

The writ petition itself, however, was not filed within the 90-day period prescribed by Code of Civil Procedure section 1094.6, and equitable tolling is not established on the current record.

For the preceding reasons, the demurrer to the first cause of action for a Writ of Mandate under Code of Civil Procedure section 1094.5, the third cause of action for Declaratory Relief, and the fourth cause of action for Injunctive Relief is **SUSTAINED WITH LEAVE TO AMEND** solely to allow Petitioners to allege facts, if any exist, sufficient to establish objectively reasonable and good-faith conduct during the limitations period under the third element of *Saint Francis Memorial Hospital v. State Dept. of Public Health* (2020) 9 Cal.5th 710. No other amendments are permitted. The demurrer to the second cause of action for Traditional Mandamus under Code of Civil Procedure section 1085, and the demurrer as to Ms. McVey is **SUSTAINED WITHOUT LEAVE TO AMEND**.

24. 9:00 AM CASE NUMBER: N26-0113
CASE NAME: PETITION OF: CA DEPARTMENT OF MOTOR VEHICLES
HEARING IN RE: CERT OF FACTS THAT JUSTIFY CONTEMPT SANCTIONS
FILED BY: CA DEPARTMENT OF MOTOR VEHICLES
TENTATIVE RULING:

The Court received the parties' stipulation to vacate the OSC hearing. However, no proposed form of order was attached. The hearing shall be vacated and the moving party to re-submit a form of order for the Court's approval and entry.

Discovery Law & Motion

25. 9:01 AM CASE NUMBER: N23-0911
CASE NAME: VINCENT SARGENTINI VS. PATRICK CLARK
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION FROM RICHMOND ROD & GUN CLUB, SET ONE**
FILED BY: SARGENTINI, VINCENT
TENTATIVE RULING:

This matter is ordered off calendar and referred to the court-appointed discovery referee pursuant to the Order signed April 8, 2026.

Law & Motion
Add On

26. 9:00 AM CASE NUMBER: C24-00086
CASE NAME: EMIL MOUTON VS. ALLAN MENDIETA
HEARING ON MOTION TO STRIKE: 1ST AMENDED COMPLAINT
FILED BY: MENDIETA, ALLAN S.
TENTATIVE RULING:

Before the Court is a motion by defendant Allan Mendieta to strike plaintiffs' punitive damage allegations and prayer in the operative first amended complaint. For the reasons set forth, the motion to strike is **GRANTED IN ITS ENTIRETY**.

Background

Plaintiffs Emil Mouton and Elizabeth Kelly allege they were injured in a motor vehicle accident. The driver of the other vehicle was defendant Allan Mendieta. Plaintiffs sued Mr. Mendieta for the negligence (motor vehicle) and general negligence. The Court granted them leave to amend their original complaint to allege additional facts and attempt to state a basis for seeking punitive damages.

Mr. Mendieta has filed a motion to strike the punitive damages allegations and prayer for relief. Plaintiffs oppose the motion.

Procedural Objection – Late Filing

A motion to strike pursuant to Code of Civil Procedure sections 435 and 436 is subject to the same deadlines as a demurrer. Specifically, a motion to strike may be served and filed "within the time allowed to respond to a pleading." (Code Civ. Proc. § 435(b)(1).) (*See also* Cal. R. Ct., Rule 3.1322(b) ["A notice of motion to strike must be given within the time allowed to plead, and if a demurrer is interposed, concurrently therewith, and must be noticed for hearing and heard at the same time as

the demurrer."].) A responsive pleading was required to be filed within 30 days after service of the FAC, as extended for service by email, mail, or other means. (Code Civ. Proc. §§ 430.40(a), 1010.6 and 1013.)

Nevertheless, the Court has discretion to consider a late-filed demurrer. (*McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 280; *Jackson v. Doe* (2011) 192 Cal.App.4th 742, 749-750.) Defendant's motion to strike was filed concurrently with a demurrer. There is no evidence Plaintiffs were prejudiced by the late filing, as they have responded to the motion on the merits, and they have had additional time to confer with opposing counsel based on the Court's enforcement of the meet and confer requirements of Code of Civil Procedure section 435.5 and the continuance of the hearing. Further, the Court has discretion at any time to strike portions of a pleading on appropriate grounds. (Code Civ. Proc. §§ 436(a) and (b).)

Procedural Issue – Declarations Addressing Evidence and Merits of the Claim for Punitive Damages

Defendant filed a declaration of counsel attaching Defendant's own written responses to discovery and excerpts of deposition transcripts taken in the case in support of the motion to strike. (Leary Decl., Exhs. 2-4.) After the Court ordered the parties to complete a compliant meet and confer under Code of Civil Procedure section 435.5, counsel for each side filed supplemental declarations confirming the meet and confer discussion took place but also addressing the parties' competing descriptions of evidence regarding an alleged witness to the accident and to facts relevant to the punitive damages claim.

The Court rules on a motion to strike in the same manner as a demurrer. (Code Civ. Proc. § 437; *Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53.) The Court does not consider this evidence in ruling on the demurrer. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, court does not consider "the substance of declarations, matter not subject to judicial notice, or documents judicially noticed but not accepted for the truth of their contents. [Citations omitted.]"]; *Williams v. Southern California Gas Co.* (2009) 176 Cal. App. 4th 591, 600 ["[A] court ruling on a general demurrer is not empowered to 'ascertain whether the facts stated [in the complaint] are true or untrue.' [Citation omitted.],"] holding trial court could not draw inferences from discovery responses in sustaining a demurrer based on the untruthfulness of the allegations of the complaint]; *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 660 [demurrer hearing cannot be turned into contested evidentiary hearing].)

Legal Standards Applicable to Motion to Strike Punitive Damages

The Court, on motion by a party or "at any time in its discretion, and upon terms it deems proper," may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc. §§ 436(a) and (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice. (Code Civ. Proc. § 437.) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].)

The standards for alleging a right to punitive damages are set forth in Civil Code section 3294 and the case law construing it, which require more than mere conclusory allegations of willful, malicious, or

oppressive conduct. Under Civil Code section 3294, punitive damages may be awarded in "an action for the breach of an obligation not arising from contract" where Plaintiff proves the "defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294(a).) "Malice" is defined as conduct "intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294(c)(1) [emphasis added].)

Civil Code section 3294 was amended in 1987 to add the requirement that conduct be "despicable" to support an award of punitive damages based on malice or oppression, unless the complaint alleges an intent to injure the plaintiff. (See *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211; Stats.1987, c. 1498, § 5, p. 5780.) The California Supreme Court explained:

[T]he statute's reference to "despicable" conduct seems to represent a new substantive limitation on punitive damage awards. Used in its ordinary sense, the adjective "despicable" is a powerful term that refers to circumstances that are "base," "vile," or "contemptible." (4 Oxford English Dict. (2d ed. 1989) p. 529.) As amended to include this word, the statute plainly indicates that absent an intent to injure the plaintiff, "malice" requires more than a "willful and conscious" disregard of the plaintiffs' interests. The additional component of "despicable conduct" must be found.

(*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) (See also *Lackner v. North, supra*, 135 Cal.App.4th at 1209 ["The adjective 'despicable' connotes conduct that is ' . . . so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.' [Citations, internal quotations omitted.]".])

"Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances [set forth in Civil Code section 3294.] . . . [Citations omitted.]" (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 163-164.) A motion to strike is properly granted when a complaint fails to allege facts to state a *prima facie* claim for punitive damages under the standards of the statute. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63.) Alleging an intentional tort alone is not enough to support a claim for punitive damages: "Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 [emphasis added, citing *G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29].) Conclusory allegations parroting the language of the statute are not enough for a punitive damages claim to survive a motion to strike. (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963 ["Pleading in the language of the statute is acceptable provided that sufficient facts are pleaded to support the allegations. [Citation omitted; emphasis added.] The terms themselves are conclusory, however." (Emphasis added.)).) (See also *Lackner v. North, supra*, 135 Cal. App. 4th at 1210 ["Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate" (Emphasis added.)].)

It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden*

v. Broadway State Bank (1936) 11 Cal.App.2d 428, 429.)

Analysis

In their opposition to the motion, Plaintiffs rely on "malice" as the basis for their claim for punitive damages, and specifically the alternative definition of malice based on "despicable conduct which is carried on by the defendant with a willful and conscious disregarding of the rights or safety of others." (Opp. p. 4, ll. 18-27.) They argue that, notwithstanding the language of Civil Code section 3294(c)(1) defining malice to require both "a willful and conscious disregard of the rights or safety of others" rising to the level of "despicable" conduct, recklessness is sufficient. To support this position, they rely on a California Supreme Court decision addressing the elements of a cause of action for intentional infliction of emotion distress, not the statutory requirements for imposing punitive damages. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 905-906.) The Court finds the decision inapposite and unpersuasive on the issue presented by the motion to strike.

Plaintiffs also rely on a decision of the Ninth Circuit Bankruptcy Appellate Panel in which the panel summarized the history of Civil Code section 3294 and concluded that "conscious disregard within the meaning of CC § 3294 is consistent with reckless conduct." (*In re Plyam* (9th Cir. BAP 2015) 530 B.R. 456, 465-468.) Decisions of the lower federal courts interpreting California law are nonbinding and at most persuasive authority on matters of California substantive law. (*T.H. v. Novartis Pharmaceuticals Corp.* (2017) 4 Cal.5th 145, 175; *Beverage v. Apple, Inc.* (2024) 101 Cal.App.5th 736, 756, fn. 6.) The Court is bound to follow controlling published California case authority. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455-456; *ZF Micro Devices, Inc. v. TAT Capital Partners, Ltd.* (2016) 5 Cal.App.5th 69, 92.) The *Plyam* decision has never been cited or relied on by any reported California decision.

Plaintiffs make the conclusory allegation that Defendant "recklessly" operated his vehicle in a manner that caused it "to collide with Plaintiff's vehicle." (Compl. 2nd C/A ¶ 2.) They allege they were injured, but the nature and extent of their injuries are described in only generic terms. They allege they sustained "physical pain, mental suffering, loss of enjoyment of life, disfigurement, physical impairment, inconvenience, grief, anxiety, humiliation, and emotional distress," they had to seek "medical care and treatment," on information and belief, "they will require further medical care and therapy," and they were "injured in their health, strength and activity, sustaining injuries to various parts of their bodies and injuries to their nervous system, and various other injuries to their person, including loss of capacity for the enjoyment of life, all of which have caused and will continue to cause Plaintiffs great mental and physical pain and suffering." (Compl. 2nd C/A ¶¶ 2-4.)

Plaintiffs allege two particular facts to support their claim for punitive damages based on Defendant's conduct. They allege Defendant "was operating his vehicle while intoxicated and/or impaired." (Compl. 2nd C/A ¶ 6.) They also allege that Defendant "fled the scene of the crash after it occurred." (Compl. 2nd C/A ¶ 8.) They do not allege this was a "hit and run" accident, or that Defendant did not stop after the accident, but only vaguely that he left the scene of the accident "after it occurred."

The *Plyam* decision cites and highlights the California Supreme Court's decision in *Taylor v. Superior Court* (1979) 24 Cal. 3d 890. In that case, the California Supreme Court concluded that driving a motor vehicle while under the influence of alcohol "may constitute an act of 'malice' under section 3294 if performed under circumstances which disclose a conscious disregard of the probable dangerous

consequences." (*Id.* at 892 [emphasis added].) The complaint in *Taylor* included detailed factual allegations of defendant's multiple prior drunk driving arrests and convictions, defendant's prior serious car accident driving while intoxicated, defendant's status on probation under orders not to drive for six hours after consuming alcohol, defendant's job which involved transporting alcoholic beverages, and defendant's consumption of alcohol while he was driving when the accident occurred. (*Id.* at 893.)

In another drunk driving case after *Taylor*, *Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, decided after *Taylor*, the Court found the complaint alleged facts sufficient to support a claim for punitive damages against an intoxicated driver who killed a bicyclist. (*Id.* at 86.) The plaintiff in *Dawes* alleged that the defendant not only drove after drinking but drove in a reckless manner at an excessive speed under circumstances when there was a significant risk of injury to pedestrians and bicyclists because of crowded traffic conditions. The Court found those additional facts distinguished the case from "ordinary" drunk driving, because plaintiff "set forth specific facts that reasonably give rise to an inference of a conscious disregard of safety and probable injury to others on the part of defendant [']to support a claim of malice or oppression under Civil Code § 3294.' " (*Id.* at 89-90 [emphasis added].) "The risk of injury to others from ordinary driving while intoxicated is certainly foreseeable, but it is not necessarily probable." (*Id.* at 89 [emphasis added].) Notably, *Taylor* and *Dawes* were both decided before the 1987 amendment to Civil Code section 3294 to add the requirement that the conduct be "despicable."

Accepting the allegations as true, even if driving while intoxicated and "fleeing" the scene after the accident occurred is reckless conduct sufficient to meet the "willful and conscious disregard" requirement of malice, the Court does not find those two facts alone, the only specific facts alleged in addition to Plaintiffs' conclusory allegations in the language of the punitive damages statute or conclusory characterization of Defendant as "reckless," are sufficient to meet the requirement that the conduct be "despicable" under the amended version of Civil Code section 3294 as that term has been interpreted by the California Supreme Court in *College Park*.

Plaintiffs' opposition ignores the "despicable" requirement of Civil Code section 3294 as amended in 1987, even if driving while intoxicated and leaving at some undefined point in time after the accident occurred constitutes "willful and conscious disregard" of the safety of others. The case law requires specific facts to be pled to meet the facts and circumstances required under the standards of the punitive damages statute. (*Grieves, supra*, 157 Cal.App.3d at 163-164, 166; *Blegen, supra*, 125 Cal.App.3d at 963; *Lackner, supra*, 135 Cal. App. 4th at 1210.) While Plaintiffs may not have to "outline the entirety of their case" in the FAC (Opp. p. 11, ll. 20-21), they do have to plead sufficient facts and circumstances to state a claim for the punitive damages they seek in the FAC. (*Grieves, supra*, 157 Cal.App.3d at 163-164.)

Conclusion and Ruling

Defendant's motion to strike is **GRANTED IN ITS ENTIRETY**. In their opposition, Plaintiffs do not request leave to amend if the motion to strike were granted. The ruling is **WITHOUT PREJUDICE** to Plaintiffs' making a motion for leave to amend if they possess, or later obtain through discovery, additional facts they can allege specifically to support a claim for punitive damages under the standards of Civil Code section 3294 and the case law.